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The Motor Vehicles Rules, 1969

Notification: No. T-9/225-65, dated 26th July, 1968 (Gazette of West Pakistan, Part I, dated 6th December, 1968)

Date of Exercise of Power: 3rd November, 1969

Superseded Rules: Punjab Motor Vehicles Rules, 1940; N.W.F.P. Motor Vehicles Rules, 1940; Baluchistan Motor Vehicles Rules, 1940; Sind Motor Vehicles Rules, 1940.

Governing Ordinance: Provincial Motor Vehicles Ordinance, 1965 (Ordinance XIX of 1965)

Chapter I: Preliminary

Rule 1: Short Title, Extent and Commencement

(1) These rules may be called the Baluchistan N.W.F.P. Punjab and Sind Motor Vehicles Rules, 1969.

(2) They shall extend to the whole of Pakistan, except the Tribal Areas.

N.W.F.P. Amendment: They shall apply to the whole of the North-West Frontier Province.

(3) They shall come into force at once.

N.W.F.P. Amendment: For the word “Corporation” and “Road Transport Corporation”, read “Board” and “North-West Frontier Province Road Transport Board” respectively.

Rule 2: Definitions

Key definitions include:

(a) Articulated vehicle: A motor vehicle with a trailer attached so that part of the trailer's weight is borne by the main vehicle.

(b) Government: Government of Pakistan.

(c) Form: A form set forth in the First Schedule to the Ordinance or appended to these rules.

(d) Forwarding Agent: A registered firm/company engaged in booking goods, permitted to use a place for loading/unloading goods vehicles.

(e) Motor cab rickshaw: A three-wheeled motor cab (unladen weight $\leq$ 900 lbs) for up to 2 passengers (excluding driver).

(f) Motor cycle rickshaw: A three-wheeled private vehicle (unladen weight $\leq$ 900 lbs) for up to 2 persons (excluding driver), not for hire.

(g) Motor Vehicles Examiner: An officer appointed by the Inspector-General of Police under Rule 35.

(h) Ordinance: The Provincial Motor Vehicles Ordinance, 1965.

(i) Passenger: Any person traveling in a public service vehicle, excluding the driver, conductor, or on-duty employee.

Punjab Amendment: Adds (ii) "Tribunal" meaning a Claims Tribunal constituted under Section 67-A.

(j) pounds: Pounds avoirdupois.

(k) province: The Province of West Pakistan.

(l) section: A section of the Ordinance.

(m) urban area: Area of a municipality, small town, cantonment, or other locally notified area.

Rule 3: Payment of Fees

Fees prescribed shall be paid in advance as per government instructions.

Rule 4: Power of Government to Exempt

Government, in consultation with the Provincial Transport Authority, may exempt any motor vehicle or class of vehicles from all or any of these rules.

Chapter II: Licensing of Motor Vehicles

Rule 5: Licensing Authority

(1) The licensing authority is the Superintendent of Police of the District or a Gazetted Police Officer nominated by him.

(2) The area of jurisdiction is the District.

N.W.F.P. Amendment: For Peshawar District, the Licensing Authority is the Assistant Inspector-General of Police (Traffic) or his nominee.

Punjab Amendment:

(i) For heavy transport vehicles: Assistant Inspector-General of Police (Transport); Superintendent of Police of the District or his authorized Gazetted Officer; Additional Superintendent of Police incharge of a Sub-Division.

(ii) For other vehicles: (The proviso states that for renewal of licences *other than* for transport vehicles, the Post Master is the Licensing Authority).

Provision for Renewal via Post Office: The Post Master Incharge of a Post Office is the Licensing Authority for renewal of licences (except for light/heavy transport vehicles or those covered by proviso to S.12(4)).

Rule 6: Authorization to Drive a Public Service Vehicle

(1) No person shall drive a public service vehicle without an authorization in Form C on their licence.

(2) For roads specified in the First Schedule, authorization must include "Valid also for Hilly Roads".

(3) Application for authorization is made in Form L.P.S.A., submitting the driving licence.

(4) Experience Requirements:

Motor cab (not rickshaw): Must hold a valid motor car licence for 1+ years.

Other public service vehicles: Must have 1+ year experience driving a heavy transport vehicle.

No such restriction for motor cab rickshaws.

Provision for Government exemption from these experience rules.

(5) Licensing authority may conduct enquiries, summon the applicant, and require a driving test.

(6) If satisfied, the authority grants authorization. Refusal must be based on the applicant not being a fit person.

(7) Authorization to drive a motor cab/rickshaw in Karachi, Hyderabad, Multan, Lahore, Faisalabad, Rawalpindi, or Peshawar requires adequate knowledge of the city's topography.

(8) For renewal, the authority may require a medical certificate (Form B).

(9) Authorization renewal can be refused based on medical grounds.

(10) Refusal to issue, cancel, or refuse renewal requires giving the applicant an opportunity to be heard.

Rule 7: Power to Make Enquiries

Licensing authority may make enquiries to establish identity and check for disqualifications.

Rule 8: Testing Officers

(1) Test Conducting Boards:

(a) For transport vehicles (except delivery vans) or driving as a paid employee: A Board consisting of:

Secretary, Regional Transport Authority.

Motor Vehicle Examiner.

Representative of the Road Transport Corporation.

Quorum: 2 members, one must be the Vehicles Examiner.

Punjab Amendment: Board for public service vehicles consists of:

Police representative (nominated by AIG Traffic).

Representative of West Pakistan Transport Federation.

One MNA/MPA of the District (nominated by Govt.).

Deputy Superintendent of Police (Headquarters).

Quorum: 2 members, one must be the police representative. Tests held twice a month.

(b) For any other vehicle: By an Inspector/Sub-Inspector/Sergeant of Police authorized by the Superintendent of Police.

(2) Applicant must furnish a serviceable vehicle and present themselves at the specified time/place.

(3) Test fee is Rs. 5 (non-refundable). Exemptions for:

(a) Central/Provincial Govt. employees driving govt. vehicles.

(b) Ex-servicemen with proficiency certificate from Armed Forces.

(c) Those exempted by Govt. order.

Rule 9: Testing of Trainees of Road Transport Corporation

For RTC trainees from a Board of Technical Education-recognized school, the test is conducted by a Board of:

Representative of Board of Technical Education.

Motor Vehicles Examiner.

Principal of the RTC Training School or his representative.

Quorum: 2 members.

Punjab Amendment:

Rule 9: Exemption from Part I of the test for holders of a certificate from a driving institute recognized by the Board of Technical Education.

Rule 9-A: Minimum driving experience required before a test: 6 weeks.

Rule 9-B: If test is failed, re-appearance is allowed after 6 weeks.

Rule 10: Appellate Authority

(1) Appeals against licensing authority decisions (S.14(3), S.16()): Deputy Inspector-General of Police of the District.

(2) Appeals against Regional Transport Authority decisions (S.17(4)): Chairman, Provincial Transport Authority.

Rule 11: Conduct and Hearing of Appeals

(1) Appeal memo (in duplicate) with Re. 1 court fee, grounds of objection, and certified copy of the order.

(2) Notice to the authority against whose order the appeal is made.

(3) Appellate authority hears parties, may confirm, vary, or set aside the order.

(4) Copy of any document can be obtained for 50 paisa per page.

Rule 12: Photograph on Medical Certificate

(1) Photo must be affixed to Form B, signed/sealed by the medical practitioner.

(2) Medical certificate granted more than 1 month before application may be declined.

Rule 13: Requirements as to Photograph

(1) Photo size: Not more than 2" x 2.5".

(2) Photo on licence must be sealed with the licensing authority's seal.

Sind Amendment: (2-A) Applicant's thumb-impression must be obtained on the application form and affixed on the licence.

(3) If photo becomes unclear, licensing authority can demand new photos.

(4) Procedure for replacing photograph on licence.

(5) Note the date when a new photo is affixed.

(6) Fee for a duplicate licence: Rs. 5.

Rule 14: Licences Lost or Destroyed

- (1) Report loss/destruction in Form L L D to the local licensing authority.
- (2) Procedure for issuing a duplicate licence.
- (3) Holder must furnish two recent photographs for duplicate.
- (4) Fee for duplicate: Rs. 5. Free if lost in custody of a Court/authority.
- (5) If original is found after duplicate issued, it must be surrendered.
- (6) Finder of a licence must deliver it to the nearest police station or licensing authority.

Rule 15: Defaced or Torn Licences

- (1) Licensing authority may impound illegible/altered licences and issue a duplicate.
- (2) Procedure for handling licences issued by another authority.
- (3) Rules for transferring or replacing the photograph.
- (4) Fee for duplicate: Rs. 5.

Baluchistan Amendment: Fee is Rs. 10.

Rule 16: Issue of Duplicate Licences

Duplicate licences must be stamped "Duplicate" in red, marked with the date of issue and authority's seal.

Rule 17: Temporary Authorization

- (1) When a licence is surrendered (e.g., for renewal), a receipt (Form L-Tem or L-Tem (Police)) is given, which acts as a temporary licence.
- (2) The granting authority or a Magistrate may extend the receipt's validity.
- (3) No fee for the receipt.

Rule 18: Procedure when Licence is Forwarded to a Court

A driver who has sent his licence to a Court has 10 days (or 4 days after receipt from Court) to produce it at a police station.

Must show the Court summons and postal receipt for the registered letter sent to the Court.

Rule 19: Learner's Driving Licence

(1) Exemption from S.3 (requiring a licence) if:

- (i) Carries a learner's licence (Form [L.Lr.](#)).
- (ii) A licensed instructor is present in the vehicle (except for two-wheelers).
- (iii) White "L" plate (7" sq) on front and rear.
- (iv) No fare-paying passengers.

(2) Application in Form LLR.A to local licensing authority. Fee: Rs. 10.

(3) May be required to pass a preliminary oral test on road regulations.

(4) Valid for 6 months, renewable for another 6 months (Fee: Rs. 2).

(5) Licensing authority can refuse/revoke after hearing the applicant.

(6) Appeal to Deputy Inspector-General of Police within 30 days.

(7) Must produce learner's licence on demand by a uniformed police officer.

Rule 20: Disqualification under Sections 16 and 17

(1) Licensing authority taking possession of a licence must intimate the original issuing authority.

(2) Regional Transport Authority must give a hearing before disqualifying someone from holding a transport vehicle licence.

(3) Endorse disqualification on licence and intimate issuing authority.

Rule 21: Intimation of Endorsements and Renewals

(1) Court making an endorsement must intimate the issuing and last renewing authority in Form L E.

(2) Licensing authority renewing a licence must intimate the original issuing authority in Form LLR.

Rule 22: Change of Address

Holder of a paid employee or public service vehicle licence must report any change of address to the issuing and last renewing authority.

Rule 23: Schools of Motoring

- (1) No person can run a driving school without a licence (Form M.S.).
- (2) Application to local licensing authority.
- (3) Licensing authority may grant a licence with conditions or refuse it (with written reasons).
- (4) Licence valid for 3 years, renewable.
- (5) Factors considered for granting licence: moral character, qualifications, premises, financial resources, vehicles (must be dual-control), teaching equipment, staff qualifications (5 yrs driving + mechanics cert., knowledge of traffic rules, language ability, first-aid cert.), first-aid kits, need in locality.
- (6) Must maintain student records with photos.
- (7) Must submit information/returns as called for.
- (8) Cannot change business location without approval; premises open for inspection.
- (9) Licensing authority can approve courses, duration, and pupil numbers.
- (10) Fees charged must be as fixed by the licensing authority.
- (11) Licence can be suspended/cancelled for violations, non-maintenance, poor instruction, etc., after giving a chance to be heard.
- (12) Surrender Form M.S. upon cancellation/suspension.

Rule 24: Appellate Authority for Schools

Appeals against licensing authority orders on schools of motoring go to the Deputy Inspector-General of Police.

Rule 25: Conduct of Appeals for Schools

- (1) Appeal memo in duplicate with Rs. 2 fee and certified copy of order.

- (2) Notice to licensing authority.
- (3) Appellate authority hears parties and passes order.
- (4) Copy of documents available for Rs. 2 each.

Rule 26: Fees for Driving Licences

- (i) Issue of driving licence: Rs. 20.00
- (ii) Renewal of driving licence:
 - (a) Within 30 days of expiry: Rs. 10.00
 - (b) After 30 days of expiry: Rs. 30.00

Rule 26-A: Renewal by Postal Authorities

Renewal can be done at Post Offices as per the Punjab Renewal of Repetitive Licences... Rules, 1970.

Rule 27: Exemption from Driving Licence Fees

No fee for:

- (a)(i) Central/Provincial Govt. employees driving govt. vehicles.
- (a)(ii) Foreign Consular Officers and others specified by Govt.
- (b) Ex-servicemen with proficiency certificate from Armed Forces.

Chapter III: Registration of Motor Vehicles

Rule 28: Registering Authority

- (1) The registering authority is the Excise and Taxation Officer of the District.
- (2) The area of jurisdiction is the District.
- (3) The registering authority must give the owner an opportunity to be heard before canceling or suspending a certificate of registration.

Rule 29: Appellate Authority

(1) Appeals against orders of a registering authority (Chapter III): Director, Excise and Taxation of the district.

(2) Appeals against suspension of registration (S.39 + R.35): Director, Excise and Taxation.

(3) Appeals against an order on a certificate of fitness (S.39 + R.35): Superintendent of Police.

Rule 30: Conduct and Hearing of Appeals (Registration)

(1) Appeal memo in duplicate with a fee of Rs. 5 and a certified copy of the order. Fee may be refunded if appeal succeeds.

(2) Appellate authority hears parties and may confirm, vary, or set aside the order.

(3) Copies of documents can be obtained for Rs. 2 each.

(4) The appellate authority may provide copies of appeal documents for Rs. 2 per copy.

Rule 31: Assignment of Registered Weights

The registering authority may assign a weight less than the maximum permitted as the registered laden or axle weight if the owner so desires.

Rule 32: Assignment and Exhibition of Registration Marks

(1) Registration marks are set forth in the Sixth Schedule to the Ordinance.

(2) Marks must be clear, legible, on a plate facing front and rear. Govt. vehicles (except Special Branch) must use the distinctive plate illustrated in the Second Schedule to these rules, showing the department name. Public service vehicles must also show the mark inside, above the windscreen.

(3) Marks must be in English letters and numerals with minimum dimensions:

(a) For most vehicles: Letters: 2.5" H; Numerals: 3.5" H. Specific spacing rules apply.

(b) For motorcycles, rickshaws, invalid carriages: Letters: 1.66" H; Numerals: 1.66" H. Smaller spacing rules apply.

(4) The plate must not be inclined more than 30° from vertical. Display must be:

(a) Transport vehicles (except motor cabs): Letters above, numerals below, in two lines.

- (b) All others: Can be in two lines or one horizontal line.
- (5) For motorcycles/invalid carriages, the front mark can be on a plate in line with the vehicle's axis.
- (6) On public service vehicles, marks must be at least 18 inches from the ground.
- (7) If on polished metal, surfaces must be plain, not rounded.

Sind Amendment:

(8)(a) Registration plate fees:

- (i) Motorcycle Rickshaws, Scooters, Motorcycles: Rs. 10 per single plate.
- (ii) Trucks and Trailers: Rs. 75 for a set of three plates.
- (iii) Other Vehicles: Rs. 50 for a set of two plates.

(b) Plate sizes:

Non-commercial vehicles: Front: 16"x5.5", Rear: 13"x7"

Commercial vehicles: Both plates: 13"x7"

Provision: For motorcycles, etc.: 6.5"x6.5"

(c) Color schemes to be notified from groups for non-commercial, commercial, and government vehicles.

(d) Plates must be alphanumeric (excluding I and O), with 4 digits, Sind Govt. monogram, and district name. Specific colors for motorcycle rickshaws and "Sind Police" inscription for govt. vehicles.

Rule 32-A: Registration for Foreigners on Non-Diplomatic Assignment

- (1) Vehicles of foreigners on non-diplomatic assignment must carry marks in Black on Yellow Background (e.g., Country code + Pakistan mark: 72-LEZ-7455).
- (2) Such vehicles shall not display their original foreign registration mark.

Rule 33: Registration Mark of a Trailer

- (1) The trailer's registration mark must be on the left-hand side. Dimensions as per Rule 32(3)(b).

(2) The drawing vehicle's mark affixed to the rear of the trailer must conform to all rules for motor vehicles.

Rule 34: Particulars to be Printed on Transport Vehicles

(1) Except motor cabs, delivery vans, or certain trailers, the following must be displayed inside the driver's cab in a fixed frame:

Registered No.

Owner's name & address.

Unladen Weight (U.W.)

Registered Laden Weight (R.L.W.)

Carrying capacity (passengers or goods).

Front Axle Weight (F.A.W.)

Rear Axle Weight (R.A.W.)

Number & size of tyres (front, rear, intermediate).

Plus signatures of M.V. Examiner and authorized workshop person, workshop licence no., place of issue.

(2) The owner's full name must be exhibited on both sides of the vehicle in 4" high letters (abbreviations allowed with RTA approval).

Sind Amendment:

(2-A) In every motor cab, rickshaw, and taxi: registration mark, driver's name & photo, and owner's name & address must be displayed in a 6 sq. inch metal frame inside the cabin.

(3) The word 'TAXI' (white) must be on the windscreen and rear glass of motor cabs/rickshaws. The word 'Private' (red) must be on the windscreen of motor cycle rickshaws.

Sind Amendment:

(4) The registration mark of a taxi must be painted in red on the upper left corner of the front windscreen (letters/digits: 5/6" H, 7/60" W).

(5) Does not apply to vehicles registered under S.40 or S.41.

Rule 35: Issue and Renewal of Certificate of Fitness

(1)(a) Prescribed authority for fitness certificates:

(i) Road Transport Corporation vehicles: Works Manager of RTC or appointed officer.

(ii) All other vehicles: Motor Vehicles Examiner appointed by the Inspector-General of Police.

N.W.F.P. Amendment: For other vehicles, the M.V. Examiner must examine the vehicle in the presence of the D.S.P. (Headquarters) or a D.S.P. deputed by the S.P.; both must agree the vehicle is fit.

(b) A copy of the fitness certificate must be sent to the registering authority.

Provision: RTA may authorize any licensed Automobile Workshop to perform these functions.

(2) Application for issue/renewal in Form C.F.A. / Form C.F.R.A. to the M.V. Examiner or licensed workshop of the area.

(3) The issuing authority may endorse the next inspection date on the certificate.

(4) Owner can apply for a date change >15 days before the inspection date.

(5) If no date is endorsed, apply for renewal >15 days before expiry.

(6) Only one fitness certificate per vehicle, bound in the registration certificate.

(7) If a vehicle breaks down outside the area, the local M.V. Examiner can authorize its use for up to 1 week to return to the proper area (Form C.F. Sub.).

(8) A damaged vehicle can be authorized for driving to a repair place at reduced speed (Form C.F.X.).

(9) Fees:

(i) Grant of fitness certificate: Rs. 20

(ii) Renewal:

(a) Vehicle produced within 15 days of expiry: Rs. 10

(b) Vehicle produced after 15 days: Rs. 10 + penalty up to Rs. 20

Provision: Fee for a licensed workshop: Rs. 10

Punjab Amendment: Increased fees: Grant: Rs. 50; Renewal (on time): Rs. 25; Renewal (late): Rs. 25 + penalty up to Rs. 100; Workshop fee: Rs. 20.

(10) A M.V. Examiner or Police Officer ($\geq$ Dy.S.P.) can cancel/suspend (up to 2 months) a fitness certificate after hearing the owner if the vehicle is unfit.

(11) Notice of cancellation is given in Form C.F.C.. The authority may then authorize driving for repair (Form C.E.X.).

(12) Owner can apply for restoration. If inspected and passed within 14 days of cancellation, the original certificate is restored. Otherwise, a fresh certificate is needed.

(13) The inspecting authority must fill Form MV. Ins. in duplicate and give the original to the owner/driver.

Rule 35-A: Licensing of Automobile Workshops

(1) Application for a licence to issue/renew fitness certificates is made to the RTA in Form C.F.L.A..

(2) RTA may grant a licence in Form C.F.L (with conditions) or reject the application, provided the workshop meets standards set by the Provincial Transport Authority.

Rule 35-B: Suspension/Cancellation of Workshop Licence

(1) The RTA can suspend or cancel the licence for contravening conditions, after giving the licensee a chance to be heard.

(2) Licence is valid for 1 year from issue, unless suspended/cancelled.

Rule 35-C: Appellate Authority for Workshops

Appeal against order under Rule 35-B(1) goes to the Chairman, Provincial Transport Authority within 30 days (final order).

Rule 36: Temporary Registration of Newly Sold Vehicles

(1) Allows temporary registration if ordinary registration is impracticable or if the buyer is taking the vehicle to another district.

- (2) Special registering authorities can be appointed: Revenue officers ($\geq$ Asst. Collector), Police officers ($\geq$ Inspector), or approved motor dealer firms/associations.
- (3) Only for vehicles not previously registered.
- (4) Application must be in writing, indicating the destination district, supported by a sale certificate from the seller.
- (5) Temporary certificate issued in Form CR Tern (Foil A to applicant, Foil B to destination registering authority, Counterfoil kept on record).
- (6) Destination authority sends an acknowledgment.
- (7) Records of dealer firms/associations are open to inspection by police ($\geq$ Sub-Inspector).
- (8) Valid for 10 days, non-renewable.
- (9) A temporary distinguishing mark is assigned (red on yellow). If issued by a dealer, the firm's name must be on the plate.
- (10) Registering authority allocates a block of registration marks to each authorized firm/association.

Rule 37: Loss/Destruction of Certificate of Registration (Non-Transport)

- (1) Report loss/destruction in writing and apply for duplicate in Form C.R.L.D..
- (2) Registering authority may issue a duplicate in Form G stamped "Duplicate" after enquiries. Fee: Rs. 3.

Sind Amendment: Fee as mentioned in the Fifth Schedule.

Rule 38: Loss/Destruction of Certificate of Registration & Fitness (Transport)

- (1) Report loss/destruction and apply for duplicate in Form C.R.L.D. Tran..
- (2) Registering authority may issue duplicates in Form G (Registration) and Form I (Fitness) after enquiries and obtaining fitness particulars. Fee: Rs. 5.

Sind Amendment: Fee as mentioned in the Fifth Schedule.

- (3) Not liable for conviction under S.90 if loss was reported and duplicate not yet received.

Rule 39: Defaced or Torn Certificate of Registration/Fitness

(1) Registering authority may impound illegible/altered certificates and issue duplicates.

(2) Fee for duplicate: Rs. 5.

Sind Amendment: Fee as mentioned in the Fifth Schedule.

Rule 40: Procedure when Lost Certificate is Found

(1) If original is found after a duplicate is issued, it must be surrendered to the registering authority.

(2) Finder of a certificate shall deliver it to the holder or the nearest police station.

Rule 41: Temporary Receipt for Certificate

(1) When certificates are submitted to an authority, a receipt (Form R Tern) is given, which acts as a temporary certificate.

(2) The validity of the receipt can be extended.

(3) No fee for the receipt.

Rule 42: Registration Fees

(1) Fees:

(a) Motorcycles, invalid carriages, small trailers (≤ 1 ton): Rs. 50

(b) Heavy transport vehicles: Rs. 500

(c) Any other vehicle: Rs. 200

(d) Temporary registration: Rs. 50

(2) Premium Registration Marks (subject to availability):

(i) Serial number 1: Rs. 10,000

(ii) Serial number 7 or 786: Rs. 7,500

(iii) Any other single digit: Rs. 5,000

Provision: If multiple applicants, the mark may be put to auction.

Baluchistan Amendment: Confirms the fees in (1)(a)-(d). Effective from 1st July, 1980.

Rule 43: Exemption from Registration Fees

No fee for:

(a) Tractors/trailers/locomotives used solely for agriculture.

N.W.F.P. Amendment: Clause (a) deleted.

(b) Notified motor ambulances for dead/sick/injured.

(c) Vehicles of Foreign missions, Consular Officers, UN staff, and others exempted by Govt.

(d) Sind Amendment adds: Motor vehicles up to 1300 CC for use by invalids.

Rule 44: Maintenance of Record by Registering Authority

(1) Registering authority must maintain a record of all registered vehicles.

(2) Fee for copy of particulars: 50 paisa per vehicle (max Rs. 3 for multiple copies at same time).

(3) Additional copying fee: 6 paisa for copies for 3 vehicles or less.

Rule 45: Authority to Suspend Certificate of Registration

Any Police Officer ($\geq$ Dy.S.P.) or Motor Vehicles Examiner may suspend a certificate of registration under S.34 after hearing the owner.

Rule 46: Hire-Purchase Agreements

(1) If declared in Form F, a note is made on Form G (Registration Certificate). This does not verify title.

(2) To cancel the note, apply in Form H. P. Ter..

(3) Change of address can be recorded, but transfer of ownership cannot be recorded without the other party's consent (Form T.O.).

(4) If the owner defaults and absconds, the other party can get a duplicate certificate after the owner is heard.

(5) Owner is deemed heard if notice sent by registered post and they fail to appear.

(6) Fee for endorsing hire-purchase note: Rs. 10. No fee for cancellation. Fee for recording transfer of ownership for such a vehicle: Rs. 5.

Sind Amendment: Fees as mentioned in the Fifth Schedule.

Rule 47: Transfer of Ownership

(1) Application in Form T.O.. Fee: Rs. 5.

Sind Amendment: Fee as mentioned in the Fifth Schedule for the vehicle class.

(2) Communication of transfer to original registering authority is in Form C.R.T.I..

Rule 48: New Registration Marks

(1) Application in Form R.M.A.. Fee: Rs. 5.

Sind Amendment: Fee as mentioned in the Fifth Schedule for the vehicle class.

(2) The new registering authority intimates the owner and hire-purchase party (if any) and requests transfer of records from the original authority in Form R.M.I..

Rule 49: Application for Change of Address and Alteration

(1) Application for change of address (S.31) in Form C.A.. Fee: Rs. 5.

(2) Application for alteration in vehicle (S.33) in Form A.M.. Fee: Rs. 5.

Sind Amendment: Fee for alteration as mentioned in the Fifth Schedule.

Rule 50: Vehicles Entering the Province from Outside

(1) If a vehicle not registered in the province is kept there for >14 days, the owner must report to the local registering authority with:

(a) Name & addresses (permanent and temporary).

(b) Registration mark.

(c) Make and description.

(d) For transport vehicles: name of the permitting authority within the province.

Provision: For a transport vehicle with a valid provincial permit, report only on first entry.

(2) Does not apply to vehicles exempted under R.52.

(3) Does not apply to vehicles registered under S.30 or S.41.

Rule 51: Hiring Agreement

(1) If possession is transferred under a hiring agreement, the owner must intimate the transferee's details to the registering authority.

(2) Intimation not necessary if the vehicle is hired for use as a stage carriage.

Rule 52: Exemption of Vehicles with Manufacturer/Dealer

(1) S.23 (registration) does not apply to vehicles in possession of a manufacturer/dealer if used under a trade certificate.

(2) Application for trade certificate in Form T.C.A. with prescribed fee.

(3) Fee: Rs. 100 for first 10 certificates, Rs. 50 for each additional block of 5 or less. Payable annually.

Sind Amendment: Fee as mentioned in the Fifth Schedule.

(4) If fewer certificates are issued, a proportional fee is refunded.

(5) Registering authority issues certificates in Form T.C. and assigns a series of trade registration marks (e.g., KA55-A).

(6) The trade certificate must be attached to the registration mark in a weatherproof holder.

(7) Only one vehicle per trade certificate can be used at a time.

(8) Certificate can only be used if the holder or bona fide employee is in the vehicle, and only for specified purposes: testing, weighment, trial by buyer, delivery, workshop visits, transport to/from railway station, exhibitions.

(9) Cannot be used as a transport vehicle.

(10) (a) Must maintain a register in Form T.R.C. (foil and counterfoil) for every trip.

(b) Register open for inspection by police ($\geq$ Sub-Inspector). Foil carried by driver, counterfoil retained for 30 days.

(11) Registering authority can suspend/cancel certificates for contraventions after giving a hearing.

(12) Application for a duplicate certificate if original is lost/destroyed/mutilated.

(13) Duplicate certificate must be marked "DUPLICATE" in red.

(14) Fee for duplicate: Re. 1.

Rule 53: Exemption of Road Rollers, Graders, and Delivery Vans

(1) Chapter III (Registration) does not apply to road rollers, graders, and road-making/cleaning plant. *However, tractors capable of other use must be registered and have fitness certificates.*

(2) Section 39 (Fitness) does not apply to delivery vans.

CHAPTER IV: CONTROL OF TRANSPORT VEHICLES

44. Transport vehicles not to be used or driven without permit.

(1) No owner or driver shall use or drive a transport vehicle in a public place except in accordance with the conditions of a permit granted or countersigned by a Regional or Provincial Transport Authority.

1st Proviso: A stage carriage permit may authorize the vehicle to be used as a contract carriage (subject to conditions).

2nd Proviso: A stage carriage permit may authorize the vehicle to be used as a goods vehicle (subject to conditions).

3rd Proviso: A public carrier's permit authorizes the holder to use the vehicle for carrying goods for their own trade or business (subject to conditions).

(2) Determining 'Carriage for Hire or Reward': The following are not deemed as carrying goods for hire or reward:

(a) Delivery/collection of goods sold/used/let on hire by the owner in their trade (other than transport business).

(b) Delivery/collection of goods to be processed/treated in the owner's trade.

(c) Carriage of goods for demonstration by a manufacturer/agent/dealer.

However, carriage by a person who acquires temporary ownership just to transport goods is deemed as carrying for hire or reward.

(3) Exemptions: Sub-section (1) does not apply to:

(a) Transport vehicles owned by Federal/Provincial Govt. for non-commercial public purposes.

(b) Vehicles owned by/under contract with a local authority for road cleaning, watering, or conservancy.

(c) Any emergency vehicle.

(d) Vehicles used for any other prescribed public purpose.

(e) Vehicles used solely for conveying corpses.

(f) Vehicles used for towing/removing goods from a disabled vehicle.

(g) Any school bus.

(h) Any trailer (not for hire/reward) drawn by a vehicle for ≤ 6 passengers.

(4) Govt. may, by rule, make sub-section (1) apply to vehicles adapted to carry > 9 passengers.

44-A. Permission to drive transport vehicles registered in other Provinces.

A transport vehicle registered in another province may be allowed to drive within the province:

(a) If it has a permit: by general/special resolution of the Provincial Transport Authority.

(b) In any other case: by general/special order of the Government.

This is subject to terms and conditions specified by the PTA or Govt.

45. Power of Government to control road transport.

(1) Govt., after considering advantages of motor transport and the need for coordination, road preservation, and preventing uneconomic competition, and after hearing affected interests, may by notification:

(i) Prohibit/restrict long-distance goods traffic by carriers.

(ii) Fix max/min fares or freights for stage carriages and public carriers.

(2) Govt. may cancel any permit(s) to enable the Corporation (under S.70) to use its vehicles on the vacated routes. (Requires previous publication as per W.P. General Clauses Act, 1956).

(3) Govt. may direct a Transport Authority not to grant new permits or to restrict their number on routes where the Corporation operates or intends to operate.

Explanation: "Route" includes any combination or elongation of routes.

45-A. Power of Government to regulate stage carriages.

(1) Govt. may conduct surveys to regulate stage carriages for purposes like reducing congestion, providing efficient/safe transport, women/disabled seating, etc. The survey determines:

(i) Need for route alignment/realignment.

(ii) Type/kind of vehicle (capacity, quality, age) allowed.

(iii) Number of permits required.

(iv) Measures to control pollution/congestion.

(v) Need for road preservation/expansion.

(vi) Adequacy time period for arrangements.

(vii) Any other factor for transport development.

(2) Based on (1), Govt. may by notification:

(a) Declare a specified route.

(b) Determine technical specifications (capacity, quality, age) of stage carriages.

(c) Fix the number of permits for the route.

(d) Determine qualifications & conditions for permit grant, based on:

(i) Applicant's competence.

(ii) Viable business plan.

- (iii) Minimum number of carriages to operate.
- (iv) Services to be established/maintained.
- (v) Maintenance & operation arrangements.
- (vi) Nature/value/duration of performance guarantee.
- (vii) Any other reasonable conditions.

46. Transport authorities.

(1) Govt. shall constitute:

- (i) A Provincial Transport Authority (PTA) for the whole province.
- (ii) Regional Transport Authorities (RTA) for specified areas (regions), which shall be at least an entire district.

(2) PTA/RTA consists of persons appointed by Govt. No person with a financial interest in a transport undertaking can be appointed or continue as a member.

Explanation: A member/employee of the Railway Board, a govt. servant, or a Corporation employee is not deemed to have a financial interest.

(3) A member must immediately inform Govt. in writing if they have such an interest upon appointment.

(4) A member must inform Govt. within 4 weeks of acquiring such an interest and will then cease to be a member.

(5) Contravention of this section is an offence.

(6) Powers & Functions of PTA:

- (i) Coordinate/regulate activities of RTAs.
 - (ii) Perform RTA duties: (a) where no RTA exists; (b) if it thinks fit and is required by the RTA; (c) if Govt. directs it to do so.
 - (iii) Settle disputes between RTAs.
 - (iv) Discharge other prescribed functions.
- (7) PTA may issue orders/directions to RTAs, which must comply.

(8) PTA/RTA may delegate its powers/functions as prescribed by rules.

47. General provisions as to applications for permits.

(1) Application for a permit is made to the RTA of the region where the vehicle is proposed to be used (or where the applicant resides/has business).

(2) Sub-section (1) does not apply to road transport services operated by the Corporation.

(3) If a notification has been issued under S.45-A, the PTA shall invite applications through press advertisement, indicating the route, vehicle specs, number of permits, and qualifications.

48. Application for stage carriage permit.

(1) Application must contain:

(a) Name and address of applicant.

(b) Registration number, type, model, and seating capacity of the vehicle.

(c) The intended route(s).

(d) Any other prescribed matters.

(2) Application must be accompanied by an affidavit that the applicant is the actual owner and that no Government servant has any financial interest in the vehicle.

Explanation: "Actual owner" means a person with proprietary rights via purchase, gift, inheritance, hire-purchase, or settlement of a lawful claim.

(3) No application shall be made unless the vehicle conforms to the prescribed age.

(4) For a specified route (S.45-A), application must be supported by material showing the applicant meets the qualifications.

49. Procedure for grant of stage carriage permits.

(1) The Transport Authority may, on payment of fee and furnishing of a bank guarantee (for potential compensation), grant a permit.

Proviso: If a previous permit for the vehicle was suspended/cancelled:

(a) No permit shall be granted during the suspension period.

(b) Authority may refuse to grant a permit for up to 3 months (reasons in writing).

(2) The bank guarantee condition may be dispensed with if:

(a) Applicant furnishes equivalent security from a registered insurance company; or

(b) Applicant furnishes a valid membership certificate from the W.P. Transporters Mutual Assistance Cooperative Society Ltd.

50. Conditions for grant of stage carriage permits.

(1) Every permit must have a condition for paying compensation in case of death/injury:

(a) Death: Rs. 8,000 to legal representatives.

(b) Injury: Amount specified in the Thirteenth Schedule.

(2) An RTA may attach prescribed conditions or any of the following:

(i) Service must commence by a specified date.

(ii) Specified number of return trips must be maintained.

(iii) Carriage to be used only on specified routes.

(iv) Approved fare-table & time-table must be exhibited and observed.

(v) Limits on number of passengers and amount of luggage.

(vi) Passengers not to be taken up/set down except at specified places.

(vii) Permit holder must maintain accounts/records and submit returns.

(viii) Tickets must be issued to passengers.

(3) The PTA/RTA may regulate the timings of departure of stage carriages.

51. Application for contract carriage permit.

(1) Application must contain:

(a) Name and address of the applicant.

(aa) Type and seating capacity of the vehicle.

(b) The area for which the permit is required.

(d) Any other prescribed particulars.

(2) Application must be accompanied by an affidavit that no Government servant has any financial interest in the vehicle.

52. Procedure of RTA in considering application for contract carriage permits.

The RTA must consider the extent to which additional contract carriages are necessary or desirable in the public interest. It must also consider representations from existing permit holders or authorities that the current number is sufficient or in excess.

53. Power to restrict the number of contract carriages and impose conditions.

(1) After considering S.52, an RTA may:

(a) Fix the number of contract carriages for which permits may be granted.

(b) Refuse a permit or grant one in a particular form.

Proviso: No permit for an area not specified in the application.

(c) Attach prescribed conditions or any of the following:

(i) Use only in a specified area/route.

(ii) Conditions for hiring outside a specified area.

(iii) Carriage of goods (to exclusion of/addition to passengers).

(iv) For motor cabs: specified fares to be charged and displayed.

(v) For other vehicles: specified max hiring rates.

(vi) Free luggage allowance and charges for excess.

(vii) Taxi meter to be fitted to every motor cab.

(viii) Conditions liable to be varied with notice.

(ix) Conditions not to be departed from without approval.

(2) Every contract carriage permit (except for vehicles carrying ≤ 6 passengers inc. driver) must have a condition for paying compensation:

(a) Death: Rs. 8,000 to legal representatives.

(b) Injury: Amount specified in the Thirteenth Schedule.

54. Application for private carriers permit.

(1) Application must contain:

(a) Type and carrying capacity of the vehicle.

(b) Nature of goods normally to be carried.

(c) The area for which the permit is required.

(d) Any other prescribed particulars.

(2) Application must be accompanied by an affidavit that no Government servant has any financial interest in the vehicle.

55. Procedure of RTA in considering application for a private carrier's permit.

(1) The RTA shall grant a permit if satisfied the vehicle will be used only for the applicant's business (not transport business).

Proviso: It may refuse to grant a permit (reasons in writing) if:

(i) Applicant's current permit is suspended.

(ii) Applicant's previous permit was cancelled.

(iii) A previous permit for the same vehicle was suspended/cancelled.

(2) RTA may impose conditions on the description of goods, area of validity, or max laden/axle weight.

(3) RTA may extend the permit's operation to another region (subject to conditions).
Counter-signature (S.65) not required.

Proviso: Cannot grant a permit effective solely in another region.

56. Application for public carrier's permit.

Application must be made on the prescribed form with prescribed particulars.

Proviso: Must be accompanied by an affidavit that no Government servant has any financial interest in the vehicle.

57. Procedure of RTA in considering application for public carrier's permit.

(1) The RTA shall grant a permit on payment of the fee.

Proviso: It may refuse to grant a permit if:

- (i) Applicant's current permit is suspended.
 - (ii) Applicant's previous permit was cancelled.
 - (iii) A previous permit for the same vehicle was suspended/cancelled.
- (2) RTA may extend the permit's operation to another region (subject to conditions).
Counter-signature (S.65) not required.

Proviso: Cannot grant a permit effective solely in another region.

58. Power to attach conditions to public carrier's permits.

The RTA may attach all or any of the following conditions:

- (i) Vehicle to be used only on specified routes/area.
- (ii) Max laden weight and axle weights not to be exceeded.
- (iii) Prescribed records to be maintained.
- (iv) Vehicle to comply with other specified conditions in the public interest or to prevent uneconomic competition.

59. Procedure in applying for and granting permits.

- (1) An application for a permit may be made at any time.
- (7) When an RTA refuses an application, it must give the applicant its reasons in writing.

(Sub-sections (2) to (6) were deleted).

60. Duration and renewal of permits.

- (1) A permit (other than a special permit) shall be effective for:
 - (a) Stage/Contract carriage (not motor-cab): 1 to 3 years (as specified by the Authority).
 - (b) Any other permit: 3 to 5 years (as specified by the Authority).

(2) A permit may be renewed on application, payment of fee, and in the prescribed manner.

Proviso: No person shall claim renewal of a stage carriage permit as a matter of right. The Authority may or may not renew it, for reasons recorded in writing.

61. General conditions attaching to all permits.

(1) A permit is not transferable without permission of the granting authority.

(2) The holder may, with permission, replace a vehicle with another of the same/similar nature/capacity.

(3) The following are conditions of every permit:

(a) Vehicle must be maintained to comply with Chapter VI.

(b) Vehicle must not be driven exceeding the speed limit.

(c) Any prohibition/restriction or fares/freights fixed under S.45 must be observed.

(d) Vehicle must not be driven in contravention of S.76.

(dd) No Government servant shall acquire any interest in the vehicle, except by law, court order, or with written permission from the permitting authority.

(e) Permit holder must furnish required information to the Authority.

(f) Provisions of motor vehicle insurance laws must be observed.

(g) Business premises (bus stations, shelters, garages, repair shops) must be according to a PTA-approved design and properly maintained.

62. Cancellation and suspension of permit.

(1) The granting authority may cancel or suspend a permit:

(a) On breach of any condition (S.61(3) or other permit condition).

(b) If vehicle is used in a manner not authorized by the permit.

(c) If holder ceases to possess the vehicle(s).

(d) If permit obtained by fraud/misrepresentation.

- (e) If holder of public carrier's permit fails to ply the vehicle without cause.
- (f) If vehicle used for subversive activities against the State.
- (g) If vehicle used to transport banned goods or for a cognizable offence.
- (h) If permit is forged or tampered with.
- (i) If holder of a specified route permit (S.45-A) fails to comply with any qualifications/terms.

Proviso: No permit shall be cancelled without giving the holder an opportunity to be heard.

- (2) The authority must record its reasons in writing and give a copy to the holder.

62-A. Suspension and cancellation of permits of the specified route and forfeiture of performance guarantee.

If an owner with multiple permits on a specified route fails to comply with terms, the PTA may impose:

- (a) Forfeiture of the whole/part of the performance guarantee; or
- (b) Suspend all/any of the permits; or
- (c) Cancel all/any of the permits.

Proviso: No penalty unless the owner is given an opportunity to show cause.

63. Transfer of permit on death of holder.

- (1) Upon death of the holder, the person succeeding to the vehicle may use the permit for 3 months, provided they inform the authority within 30 days.

Proviso: Cannot be used beyond the permit's original expiry date.

- (2) The authority may transfer the permit to such a person on application within 3 months.

Explanation: "Death" includes winding up, dissolution, insolvency, or any mode of extinction of a person/entity.

64. Special permits.

(1) An RTA may grant a special permit for one return trip only, authorizing a vehicle as a public service vehicle or authorizing a transport vehicle to be driven empty.

(2) An RTA may delegate this power to its Chairman, any member, or any gazetted officer of Govt.

65. [Validation of permits for use outside region in which granted].

This section was deleted.

66. Appeals.

(1) Any person aggrieved by the following may appeal within 30 days to the prescribed authority:

(a) Refusal to grant a permit or any condition attached.

(b) Cancellation, suspension, or variation of a permit.

(c) Refusal to transfer a permit on death.

(d) Refusal to countersign a permit or any condition.

(e) Refusal to renew a permit.

(f) A local authority/police/association/person who opposed the grant.

(g) Holder of a licence aggrieved by refusal to grant authorization to drive a PSV.

(h) Aggrieved by a penalty imposed under S.62-A.

The appellate authority must hear both parties.

Proviso: The appellate authority shall not increase the number of permits granted.

(2) No appeal lies against an order under S.45(2).

(3) Save as provided, no Court has jurisdiction to entertain/adjudicate matters under this Ordinance.

(4) No Court can grant an injunction against proceedings/actions of a Transport Authority.

67. Compensation for the death of, or injury to a passenger.

(1) In case of death/injury to a passenger in a stage carriage or contract carriage (other than for ≤6 passengers), compensation must be paid:

By the permit holder (if a permit exists), or by the owner (if no permit).

(a) Death: To legal representatives.

(b) Injury: To injured passenger.

Amount as per the Thirteenth Schedule.

(2) This compensation is in addition to any sum from an insurance policy.

(3) Any contract that purports to restrict or avoid liability for such death/injury is void.

67-A. Claims Tribunal.

(1) Govt. may constitute a Claims Tribunal for specified areas to adjudicate compensation claims under S.67.

(2) A Tribunal consists of one or more members appointed by Govt. If multiple, one is the Chairman.

67-B. Application for compensation.

(1) Application can be made by:

(a) The injured person; or

(b) Legal representatives of the deceased; or

(c) A duly authorized agent.

(2) Application is made to the Tribunal of the area where the accident occurred, in prescribed form.

(3) Application must be accompanied by the prescribed fee and made within 90 days of the accident.

Proviso: Tribunal may entertain after 90 days if satisfied with sufficient cause for delay.

67-BB. Information regarding claim for compensation.

If the Tribunal receives information about an accident, it may inform the injured/deceased's representatives that they can make an application and provide them with information.

67-C. Award of compensation.

The Tribunal shall hold an inquiry, hear the parties, and pass an order determining the amount of compensation payable and to whom.

67-D. Procedure and powers of Claims Tribunal.

(1) The Tribunal shall follow a summary procedure.

(2) The Tribunal is deemed a Civil Court for purposes of S.195 and Ch. XXXV of Cr.P.C., 1898.

(3) The Tribunal has all the powers of a Civil Court for:

(a) Taking evidence on oath, enforcing attendance, compelling discovery/production.

(b) Such other purposes as may be prescribed.

67-E. Appeal.

(1) Any person aggrieved by an order of the Tribunal may appeal on payment of the prescribed fee within 90 days to the prescribed authority.

Proviso: The appellate authority may entertain after 90 days for sufficient cause.

(2) No appeal if the amount in dispute does not exceed Rs. 1,000.

67-F. Recovery of amount of compensation.

(1) If compensation is not paid within 7 days of the order:

(a) If a bank guarantee was furnished (S.49), the bank must deposit the amount. Any unrecovered amount is recovered under (b).

(b) Otherwise, the Tribunal issues a certificate to the Collector, who recovers it as an arrear of land-revenue.

(2) If compensation is paid from a bank guarantee, the permit is suspended until a fresh guarantee is furnished.

(3) An order from a Claims Tribunal of another Province or Azad Jammu and Kashmir is enforceable in the Province as if it were from a local Tribunal (provided reciprocity exists).

67-G. Bar of jurisdiction.

No Civil Court has jurisdiction to entertain any question relating to a compensatable claim. No injunction can be granted against Tribunal actions.

68. Power to make rules as to stage carriages and contract carriages.

(1) Govt. may make rules for:

- (a) Licensing of conductors.
- (b) Regulating conduct/duties of drivers and conductors.
- (c) Regulating conduct of passengers.

(2) Such rules may authorize:

- (a) Removal of persons infringing rules.
- (b) Requiring a suspect passenger to give name/address.
- (c) Requiring a passenger to declare journey and pay fare.
- (d) Requiring production/surrender of tickets.
- (e) Requiring a passenger to leave the vehicle.
- (f) Requiring surrender of expired tickets.
- (g) Maintenance of complaint books.

69. Power to make rules for the purposes of this Chapter.

(1) Govt. may make rules to carry out this Chapter's provisions.

(2) Rules may cover:

- (i) Appointment, terms, business conduct, and delegation of powers by Transport Authorities.
- (ii) Conduct/hearing of appeals, fees, refunds.

- (iii) Forms, including permit forms.
- (iv) Issue of duplicate permits.
- (v) Documents, plates, marks to be carried by vehicles.
- (vi) Badges/uniform for drivers/conductors.
- (vii) Fees for permits, duplicates, plates, badges.
- (viii) Exemption from fees.
- (ix) Custody, production, cancellation, return of permits.
- (x) Conditions for validity of a permit in another region.
- (xi) Appellate authorities, time, and manner of appeal.
- (xii) Construction, fittings, equipment of carriages.
- (xiii) Determination of passenger capacity.
- (xiv) Carriage of goods in lieu of passengers.
- (xv) Custody/disposal of property left in a carriage.
- (xvi) Painting/marketing of vehicles & display of ads.
- (xvii) Conveyance of corpses/infected persons/goods; inspection/disinfection.
- (xviii) Fitting, testing, sealing of taxi-meters.
- (xix) Prohibiting picking up/setting down at specified places.
- (xx) Requirements for stands/halting places, fees, staff.
- (xxi) Regulation of motor cab ranks.
- (xxii) Notifying change of address or vehicle failure/damage.
- (xxiii) Authorizing inspection of permit holders' premises.
- (xxiv) Requiring to carry any person tendering the fare.
- (xxv) Conditions for carrying animals/birds.

- (xxvi) Licensing/regulating ticket agents/canvassers.
- (xxvii) Licensing/regulating goods forwarding agents.
- (xxviii) Inspection of vehicles and permits.
- (xxix) Carriage of persons other than driver in goods vehicles.
- (xxx) Records and returns by owners.
- (xxxi) Classification of routes and age restrictions for stage carriage permits.
- (xxxii) Form of application for permits.
- (xxxiii) Amount of security for stage/contract carriage permits.
- (xxxiv) Any other matter to be prescribed.

CHAPTER V

^[114]**[PUNJAB ROAD TRANSPORT BOARD]**

70. ^[115]**[Punjab Road Transport Board].**— (1) Government may establish a ^[116]**[116]**^[116]**[Punjab Road Transport Board]** for the purpose of operating road transport services in the Province and the ^[117]**[117]**^[117]**[Board]** so established shall be a body corporate by the name of the ^[118]**[118]**^[118]**[Punjab Road Transport Board]**, having perpetual succession and a common seal and shall by that name sue and be sued.

^[120]**[120]**^[120]**[120]**^[120]**[120]** (3) The term of office of each individual member shall be such as may be determined by Government at the time of his appointment.]

(4) On the expiry of the term of his office **[121]**^[121]_[* * *] a member shall be eligible for re-appointment for another term or for such shorter term as Government may determine.

(5) **[122]**^[122]_[Any] member may at any time resign his office.

Provided that his resignation shall not take effect until it is accepted by Government.

(6) **[123]**^[123]_[Each] member **[124]**^[124]_[may] receive such salary **[125]**^[125]_[or] allowances as may be determined by Government and shall perform such duties as may be assigned to them under this Ordinance or the rules framed thereunder.

(7) Government may, by notification in the official Gazette, remove **[126]**^[126]_[* * *] any member—

(i) if he refuses or fails to discharge or becomes in the opinion of Government incapable of discharging his responsibilities under this Ordinance; or

(ii) if he has been declared insolvent; or

(iii) if he has been declared to be disqualified for employment in, or has been dismissed from the service under the **[127]**^[127]_[Federal] Government or the Provincial Government or has been convicted of an offence involving moral turpitude; or

(iv) if he has knowingly acquired or continues to hold, without the permission in writing of Government, directly or indirectly or through a partner, any share or interest in any contract or employment with or by or on behalf of the **[128]**^[128]_[Board] or in any land or property which to his knowledge is likely to benefit or has benefitted as a result of the operations of the **[129]**^[129]_[Board];

[130]^[130][(v) if he absents himself form any meeting of the Board without leave of absence;

(vi) if he is found to be a lunatic or is of unsound mind.]

[131]^[131][(7-A) A person employed for the purpose of an organization established under sub-section (1) shall be deemed to be a public servant within the meaning of section 21 of the Pakistan Penal Code (Act XLV of 1860).]

[132]^[132][(8) A person employed for the purpose of the **[133]**^[133][Board] shall be deemed to be a public servant within the meaning of section 21 of the Pakistan Penal Code, 1860, but shall not be deemed to be a servant of the Government on the ground that he is employed by the **[134]**^[134][Board] established by the Government.]

[135]^[135][(9)] Government shall consult the **[136]**^[136][Board] in all matters relating to the co-ordination of road and rail transport and in the fixation of fares and freights under Chapter IV.

[137]^[137][(10)] Government may make rules not inconsistent with the provisions of this Ordinance, prescribing the powers and functions of the **[138]**^[138][Board].

[139]^[139][(11) Notwithstanding anything contained in any law or any instrument having the force of law for the time being in force, or any judgment of any court Government shall have the Power, and shall be deemed always to have had the power, to dissolve by notification the Board established under subsection (1) and to lay down in the notification the manner in which all or any of the affairs of the Board, including matters relating to the assets, liabilities, employees and officers of the Board and all matters ensuing as a consequence of the dissolution of the Board shall be dealt with after its dissolution.

(12) Any action taken, notification issued or order made by Government on or after the ninth day of May, 1985, for the dissolution of the Board established under subsection (1) and dealing with the matters ensuing as a consequence of the dissolution shall, notwithstanding anything contained in any law or any instrument having the force of law for the time being in force, or any judgment of any Court, be deemed to have been validly taken, issued or made, as the case may be.]

71. Transport Authorities to have no jurisdiction in respect of motor transport

operated by the ^[140][Board].— (1) The ^[141][Board] may operate motor transport on any route it may think fit, and where it so operates such transport, the Provincial Transport Authority and a Regional Transport Authority shall, notwithstanding anything in this Ordinance, have no jurisdiction in relation to that transport.

(2) The Provincial Transport Authority or the Regional Transport Authority shall not grant or issue stage carriage permits on new route or routes wholly lying within an urban area to be notified in this behalf by Government, unless an offer has first been made to the ^[142][Board] to operate its services on such route or routes and the ^[143][Board] has declined to operate its services on such route or routes:

Provided that if the ^[144][Board] fails to operate its services on such route or routes within three months of the date on which the offer of the Provincial Transport Authority or the Regional Transport Authority, as the case may be, was communicated to it, it shall be presumed that the ^[145][Board] has declined to operate its services on such route or routes.

72. Powers of the ^[146][Road Transport Board] to acquire property for

motor transport operated by it.— (1) ^[147][Board] shall have power to acquire any property, movable or immovable, used in, or for, or ancillary to, the operation of any motor transport conducted under this Chapter.

(2) Such acquisition may be made by serving a notice of acquisition on the owner of the property, or if such owner is not readily traceable or the ownership is in

dispute, by a notice of acquisition published in the official Gazette and shall take effect from the beginning of the day on which the notice is served or published.

(3) For any property so acquired there shall be paid compensation equivalent to the market value of the property acquired to be calculated in such manner as Government may prescribe.

(4) If any dispute arises as to the amount of compensation payable under sub-section (3), it shall be referred to the arbitration of a person who is or has been a High Court Judge and his award shall be final and binding on the parties and shall not be called in question in any Court of law nor shall anything in the Arbitration Act,

1940 [\[148\]](#)^[148], apply to such an arbitration.

CHAPTER VI

CONSTRUCTION, EQUIPMENT AND MAINTENANCE OF MOTOR VEHICLES

73. General provisions regarding construction and maintenance.— Every motor vehicle shall be so constructed and so maintained as to be at all times under the effective control of the person driving the vehicle.

74. Power to make rules.— (1) Government may make rules regulating the construction, equipment and maintenance of motor vehicles and trailers.

(2) Without prejudice to the generality of the foregoing power, Government may make rules governing any of the following matters either generally in respect of motor vehicles or trailers or motor vehicles or trailers of a particular class or in particular circumstances, namely:---

(a) the width, height, length and overhang of vehicles and of the loads to be carried therein;

(b) seating arrangements in public service vehicles and the protection of passengers against the weather;

(c) the size, nature and condition of tyres;

(d) brakes and steering gear;

(e) the use of safety glass;

(f) signalling appliances, lamps and reflectors;

- (g) speed governors;
- (h) the emission of smoke, visible vapour, sparks, ashes, grit or oil;
- (i) the reduction of noise emitted by or caused by vehicles;
- (j) prohibiting or restricting the use of audible signals at certain times or in certain places;
- (k) prohibiting the carrying of appliance likely to cause annoyance or danger;
- (l) the periodical testing and inspection of vehicles by prescribed authorities;
- (m) the particulars, other than registration marks, to be exhibited by vehicles and the manner in which they shall be exhibited;
- (n) the use of trailers or semi-trailers with motor vehicles; and
- (o) prohibiting or requiring the painting in particular colours of motor vehicles of particular description or for particular purposes or in particular areas.

CHAPTER VII

CONTROL OF TRAFFIC

75. Limits of speed.— (1) No person shall drive a motor vehicle or cause or allow a motor vehicle to be driven in any public place at a speed exceeding the maximum speed fixed for the vehicle by or under this Ordinance or by or under any other law for the time being in force:---

Provided that such maximum speed shall in no case exceed the maximum fixed for the vehicle in the Eighth Schedule.

(2) Government or any authority authorized in this behalf by Government may, if satisfied that it is necessary to restrict the speed of motor vehicles in the interest of public safety or convenience or because of the nature of any road or bridge, by notification in the official Gazette, fix such maximum speed limits as it thinks fit for motor vehicles or any specified class of motor vehicles or for motor vehicles to which a trailer is attached either generally or in a particular area or on a particular road or roads, and where any such restrictions are imposed, cause appropriate traffic signs to be placed or erected under section 79 at suitable places in such area or on or near such road or bridge, as the case may be.

(3) Nothing in this section shall apply to any vehicle registered under section 40 while it is being used in the execution of military manoeuvres within the area and during the period specified in a notification under sub-section (1) of section 2 of the Manoeuvres, Field Firing and Artillery Practice Act, 1938 ^[149].

76. Limit of weight and limitation on use.— (1) Government may prescribe conditions for the issue of permits for heavy transport vehicles by the Provincial or Regional Transport Authorities and may prohibit or restrict the use of such vehicles in any area or route within the Province.

(2) Except as may be otherwise prescribed, no person shall drive or cause or allow to be driven in any public place any motor vehicle which is not fitted with pneumatic tyres.

(3) No person shall drive or cause or allow to be driven in any public place any motor vehicle or trailer—

(a) the unladen weight of which exceeds the unladen weight specified in the certificate of registration of the vehicle; or

(b) the laden weight of which exceeds the registered laden weight specified in the certificate of registration; or

(c) any axle weight which exceeds the maximum axle weight specified for that axle in the certificate of registration.

(4) Where the driver or person in charge of a motor vehicle or trailer driven in contravention of sub-section (2) or sub-section (3) is not the owner, a Court may presume that the offence was committed with the knowledge of or under the orders of the owner of the motor vehicle or trailer.

77. Power to have vehicle weighed.— Any person authorized in this behalf by Government may, if he has reason to believe that a goods vehicle or trailer is being used in contravention of section 76, require the driver to convey the vehicle to a weighing device, if any, within a distance of one mile from any point on the forward route or within a distance of five miles from the destination of the vehicle for weighment; and if on such weighment the vehicle is found to contravene in any respect the provisions of section 76 regarding weight, he may, by order in writing, direct the driver to convey the vehicle or trailer to the nearest place to be specified in the order, where facilities exist for the storage of goods, and not to remove the vehicle or trailer from that place until the

laden weight or axle weight has been reduced or the vehicle has otherwise been treated so that it complies with the provisions of the last preceding section.

78. Power to restrict the use of vehicles.— Government or any authority authorized in this behalf by Government, if satisfied that it is necessary in the interest of public safety or convenience, or because of the nature of any road or bridge, may by notification in the official Gazette, prohibit or restrict, subject to such exceptions and conditions as may be specified in the notification, the driving of motor vehicles or of any specified class of motor vehicles or the use of trailers either generally in a specified area or on a specified road, or bridge, and when any such prohibition or restriction is imposed, shall cause appropriate traffic signs to be placed or erected under section 79 at suitable places in such area or on or near such road or bridge, as the case may be:---

Provided that where any prohibition or restriction under this section is to remain in force for a period of not more than one month, notification thereof shall not be necessary.

79. Power to erect traffic signs.— (1) Government or any authority authorized in this behalf by Government may cause or permit traffic signs to be placed or erected in any public place for the purpose of regulating motor vehicle traffic.

(2) Traffic signs erected under this Chapter for any purpose for which provision is made in the Ninth Schedule shall be of the size, colour and type and shall have the meanings set forth in the Ninth Schedule, but Government or any authority empowered in this behalf by Government may make or authorise the addition to any sign set forth in the said Schedule of transcription of the words, letters or figures thereon in such script as Government may think fit:---

Provided that the transcription shall be of similar size and colour to the words, letters or figures set forth in the Ninth Schedule.

(3) Except as provided by this Chapter, no traffic sign shall, after the commencement of this Ordinance, be placed or erected on or near any road; but all traffic signs erected prior to the commencement of this Ordinance by any competent authority shall for the purposes of this Ordinance be deemed to be traffic signs erected under the provisions of this Chapter.

(4) Government or any authority authorized under sub-section (1) may remove or cause to be removed any sign or advertisement which, in its opinion, is so placed as to obscure any traffic sign from view or any sign or advertisement which is, in its opinion so similar in appearance to a traffic sign as to be misleading.

80. Parking places and halting stations.— Government or any authority authorized in this behalf by Government may, in consultation with the local authority having jurisdiction in the area concerned, determine places at which motor vehicles may stand either indefinitely or for a specified period of time, and may determine the places at which public service vehicles may stop for a longer time than is necessary for taking up and setting down of passengers.

81. Main roads.— Government or any authority authorized by it in this behalf may, by notification in the official Gazette or by the erection at suitable places of the appropriate traffic signs referred to in **[150]**^[150] [Part III] of the Ninth Schedule, designate certain roads as main roads for the purposes of the regulations contained in the Tenth Schedule.

82. Duty to obey traffic signs.— (1) Every driver of a motor vehicle shall drive the vehicle in conformity with any indication given by a mandatory traffic sign and in conformity with the driving regulations set forth in the Tenth Schedule, and shall comply with all directions given by any electrical traffic signalling device or by any police officer engaged in the regulation of traffic in any public place.

(2) In this section “mandatory traffic sign” means traffic sign included in **[151]**^[151] [Part III] of the Ninth Schedule, of any traffic sign of similar form (that is to say, consisting of or including a circular disc displaying a device, word or figure and having a red ground or border) erected for the purpose of regulating motor vehicle traffic under sub-section (1) of section 79.

83. Signals and signalling devices.— The driver of a motor vehicle shall on the occasions specified in the Eleventh Schedule make the signal specified therein:

Provided that the signals of an intention to turn to the right or left or to stop may be given by a mechanical or an electrical device of a prescribed nature affixed to the vehicle.

84. Vehicles with left hand control.— No person shall drive or cause or allow to be driven in any public place any motor vehicle with a left hand steering control unless it is equipped with a mechanical or electrical signalling device of a prescribed nature and in working order.

85. Leaving vehicle in dangerous position.— No person in charge of a motor vehicle shall cause or allow the vehicle or any trailer to remain at rest on any road in such a

position or in such a condition or in such circumstances as to cause or be likely to cause danger, obstruction or undue inconvenience to other users of the road.

86. Riding on running boards.— No person driving or in charge of a motor vehicle shall carry any person or permit any person to be carried on the running board or otherwise than within the body of the vehicle:---

Provided that Government may, by notification in the official Gazette, permit, in such areas as may be specified in the notification, the Civil Armed Forces, the Frontier Constabulary, the West Pakistan Rangers and the Armed Police to have an armed picket on the running board of a motor vehicle or otherwise than within the body of the vehicle.

87. Obstruction of driver.— No person driving a motor vehicle shall allow any person to stand or sit or anything to be placed in such manner or position as to hamper the driver in his control of the vehicle.

88. Stationary vehicles.— No person driving or in charge of a motor vehicle shall cause or allow the vehicle to remain stationary in any public place, unless there is in the driver's seat a person duly licensed to drive the vehicle or unless the mechanism has been stopped and a brake or brakes applied or such other measures taken to ensure that the vehicle cannot accidentally be put in motion in the absence of the driver.

89. Pillion riding.— No driver of a two wheeled motor cycle shall carry more than one person in addition to himself on the cycle and no such person shall be carried otherwise than sitting on a proper seat securely fixed to the cycle behind the driver's seat.

[152]^[152]**89-A. Rider to wear helmet.**— No person shall drive, or ride the pillion seat of, a two-wheeled motor vehicle except when he is wearing a crash helmet.

Explanation— In this section, “crash helmet” means a helmet made of such material and meeting such other requirements as may be prescribed.]

90. Duty to produce licence and certificate of registration.— (1) The driver of a motor vehicle in any public place, shall, on demand by any police officer in uniform or any officer of the Transport Department not below the rank of Sub-Inspector, on production if so required of his authority, produce his licence and the certificate of registration of the vehicle and where, the vehicle is transport vehicle, the certificate of fitness and the permit of the vehicle referred to in section 39 and 44, respectively for examination.

(2) The owner of a motor vehicle, or in his absence the driver or other person in charge of the vehicle shall, on demand by a registering authority or any person authorized in this behalf by Government, produce the certificate of registration of vehicle and, where the vehicle is a transport vehicle, the certificate of fitness referred to in section 39.

(3) If the licence or certificates, as the case may be, are not at the time in the possession of the person to whom demand is made, it shall be a sufficient compliance with this section if such person produces the licence or certificate within ten days at any police station in the Province which he specifies, to the officer or authority making the demand:---

Provided that, except to such extent and with such modifications as may be prescribed, the provisions of this sub-section shall not apply to a driver driving as a paid employee, or to the driver of a transport vehicle or to any person required to produce the certificate of registration or the certificate of fitness of a transport vehicle.

91. Railway crossing.— (1) The driver of a transport vehicle who desires to pass over **[153]**^[153][an un-manned] railway level crossing shall cause the vehicle to stop before the crossing and shall not attempt to pass over the crossing unless the conductor of the vehicle, or where the vehicle has no conductor, a person authorized in this behalf by the owner of the vehicle in writing other than the driver of the vehicle, walks before the vehicle until it has cleared the railway lines.

(2) The name and particulars of the persons authorized by the owner under sub-section (1) shall be reported by the owner to the Registration Authority.

(3) A person shall not be deemed to have been authorized by owner of the vehicle for the purposes of sub-section (1) unless he has in his possession at the time of performing the act required to be done under that sub-section the written authority of the owner in this behalf.

92. Duty of driver to stop in certain cases.— (1) The driver of a motor vehicle shall cause the vehicle to stop and remain stationary so long as may reasonably be necessary,---

(a) when required to do so by any police officer in uniform, or

(b) when required to do so by any person in charge of an animal if such person apprehends that the animal is, or being alarmed by the vehicle, will become unmanageable, or

(c) when the vehicle is involved in the occurrence of an accident to a person, animal or vehicle or of damage to any property, whether the driving or management of the vehicle was or was not the cause of the accident or damage,

and he shall give his name and address and the name and address of the owner of the vehicle to any person affected by any such accident or damage who demands it provided such person also furnishes his name and address.

(2) The driver of a motor vehicle shall, on demand by a person giving his own name and address and alleging that the driver has committed an offence punishable under section 99, give his name and address to that person.

(3) In this section the expression “animal” means any horse, cattle, elephant, camel, ass, mule, sheep or goat.

93. Duty of owner of motor vehicles to give information.— The owner of a motor vehicle the driver of which is accused of any offence under this Ordinance shall, on the demand of any police officer or an officer of the Transport Department authorized in this behalf by Government, give all information regarding the name and address of and the licence held by the driver which is in his possession or could by the exercise of due diligence be ascertained by him.

94. Duty of driver in case of accident and injury to a person, animal or damage to property.— When any accident occurs, in which a motor vehicle is involved, the driver of the vehicle or other person in charge of the vehicle shall—

(a) if any person is injured as a result of such accident, take all reasonable steps to secure medical attention for the person so injured, and, if necessary, convey him to the nearest hospital, unless the injured person or his guardian, in case he is a minor, desires otherwise;

(b) if any animal is injured as a result of such accident, take steps and endeavour to locate and report the matter to the owner or custodian of the animal so injured and take all reasonable steps to secure medical attention, if necessary, for the animal;

(c) if any damage has been caused to any property as a result of such accident, take reasonable steps to report the damage to the party sustaining the damage; and

(d) give on demand by a police officer or an officer of the Transport Department authorized in this behalf by Government any information required by such officer relating to the occurrence, or, if no such officer is present, report the circumstances of occurrence at the nearest police station as soon as possible, and in any case within twenty-four hours of the occurrence.

[154]^[154]94-A. Duty of police officer in case of accident giving rise to claim

for compensation.— When an accident giving rise to a claim for compensation under section 67 is reported at a police station, the officer-in-charge of the police station shall immediately forward a copy of the first information report or the relevant extract of the daily diary, as the case may be, to the Claims Tribunal within whose jurisdiction the accident has taken place.]

95. Inspection of vehicle involved in accident.— When any accident occurs in which a motor vehicle is involved, any person authorized in this behalf by Government may, on production if so required of his authority, inspect the vehicle and for that purpose may enter at any reasonable time any premises where the vehicle may be, and may remove the vehicle for examination:---

Provided that the place to which the vehicle is so removed shall be intimated to the owner of the vehicle and the vehicle shall be returned without unnecessary delay, and in no case later than forty-eight hours of its removal.

96. Power to make rules.— (1) Government may make rules for the purpose of carrying into effect the provisions of this Chapter.

(2) Without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:---

(a) the nature of the mechanical or electrical signalling devices which may be used on motor vehicles;

(b) the erection of electrical traffic signalling devices, and the types of such devices that may be installed;

(c) the removal and the safe custody of vehicles, including their loads, which have broken down or which have been left standing or have been abandoned on roads;

(d) the installation and use of weighing devices;

(e) the exemption from all or any of the provisions of this Chapter of emergency vehicles and other special classes of vehicles, subject to such conditions as may be prescribed;

(f) the maintenance and management of parking places and stands and the fees, if any, which may be charged for their use;

(g) prohibiting the driving down hill of a motor vehicle with the gear disengaged, either generally or in specified place;

(h) prohibiting the taking hold of or mounting of a motor vehicle in motion;

(i) prohibiting the use of foot paths or pavements by motor vehicles;

(j) generally, the prevention of danger, injury or annoyance to the public or any person, or of danger or injury to property or of obstruction to traffic.

CHAPTER VIII

OFFENCES, PENALTIES AND PROCEDURE

97. Offences relating to licences.— Whoever, being disqualified under this Ordinance for holding or obtaining a licence, drives a motor vehicle in a public place or applies for or obtains a licence or, not being entitled to have a licence issued to him free of endorsement, applies for or obtains a licence without disclosing the endorsements made on a licence previously held by him, or being disqualified under this Ordinance for holding or obtaining a licence, uses a licence such as is referred to in sub-section (2) of section 10, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to five hundred rupees, or with both, and any licence so obtained by him shall be of no effect; and if the vehicle so driven is a transport vehicle or, the licence so applied for, obtained or used is a licence to drive a transport vehicle, shall be punished with imprisonment which may extend to two years and with fine which may extend to rupees one thousand, and any licence so obtained by him shall be of no effect.

98. Driving at excessive speed.— (1) Whoever drives a motor vehicle in contravention of section 75 shall be punished with fine which may extend to one hundred rupees, and when the vehicle is a transport vehicle, with a fine which shall not be less than one hundred rupees and which may extend to five hundred rupees.

(2) Whoever causes any person who is employed by him or is subject to his control to drive a motor vehicle in contravention of section 75 shall be punished with fine which may extend to two hundred rupees, and when the vehicle is a transport vehicle, with a fine which may extend to five hundred rupees.

(3) No person shall be convicted of an offence punishable under sub-section (1) solely on the evidence of one witness to the effect that in the opinion of the witness such person was driving at a speed which was unlawful, unless that opinion is shown to be based on an estimate obtained by the use of some mechanical device.

(4) The publication of a time table under which, or the giving of any direction that any journey or part of a journey is to be completed within a specified time shall, if in the opinion of the Court it is not practicable in the circumstances of the case for the journey or part of a journey to be completed in the specified time without infringing the provisions of section 75, be *prima facie* evidence that the person who published the time table or gave the direction has committed an offence punishable under sub-section (2).

99. Driving recklessly or dangerously.— (1) Whoever drives a motor vehicle at a speed or in a manner which is dangerous to human life or property having regard to all the circumstances of the case, including the nature, condition and use of the place where the vehicle is driven and the amount of traffic which actually is at the time or which might reasonably be expected to be in the place, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to five hundred rupees, and if the vehicle be a transport vehicle, with imprisonment which may extend to one year and with a fine which may extend to one thousand rupees.

(2) Whoever, having been previously convicted of an offence specified in sub-section (1) shall, within three years of such conviction, be guilty of an offence punishable under that sub-section, shall be subject for every such subsequent offence to imprisonment of either description for a term which may extend to two years, or with fine which may extend to one thousand rupees, or with both, and where the vehicle is a transport vehicle, with imprisonment which may extend to four years and with fine which may extend to one thousand rupees.

[155]^[155] 99-A. One wheeling of motorcycle.— (1) Whoever drives or rides a motorcycle in any public place, while standing or lying thereon or on one wheel, which endangers or is likely to endanger human life or property, shall be liable to be punished with imprisonment for a term which may extend to six months or with fine which may extend to five thousand rupees or with both.

(2) Whoever, having previously been convicted of an offence specified in sub-section (1), commits the same offence within three years of his previous conviction, shall, for every such subsequent offence, be liable to be punished with imprisonment for

a term which may extend to two years or with fine which may extend to ten thousand rupees or with both.

(3) Offence under this section shall be cognizable and the police officer may seize and detain the motorcycle.

(4) The motorcycle seized and detained under sub-section (3) by any police officer, may not be released before or during the trial of the offence and may be forfeited at the time of conviction of the accused.

(5) Offence under this section shall be triable by a Judicial Magistrate of the first class and the Magistrate may, if he thinks fit, try the offence, punishable under this section, in a summary way in accordance with the provisions of Chapter XXII of the Criminal Procedure Code, 1898 (V of 1898).]

100. Driving while under the influence of drink or drugs.— Whoever while driving or attempting to drive a motor vehicle is under the influence of drink or a drug to such an extent as to be incapable of exercising proper control over the vehicle, shall be punishable with imprisonment for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both, and if having been previously convicted of such an offence, shall again be guilty of an offence punishable under this section, shall be subject for every such subsequent offence to imprisonment of either description for a term which may extend to two years, or with fine which may extend to one thousand rupees, or with both.

101. Driving when mentally or physically unfit to drive.— Whoever drives a motor vehicle in any public place when he is to his knowledge suffering from any disease or disability calculated to cause his driving of the vehicle to be a source of danger to the public, shall be punished with fine which may extend to two hundred rupees, and if having been previously convicted of such an offence, shall again be guilty of an offence punishable under this section, shall be subject for every such subsequent offence to fine which may extend to five hundred rupees.

102. Punishment for abetment of certain offences.— Whoever abets the commission of an offence under section 99, 100 or 101, shall be punishable with the punishment provided for the offence.

103. Racing and trials of speed.— Whoever, without the written consent of Government, permits or takes part in a race or trial of speed between motor vehicles in any public place shall be punished with imprisonment for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

104. Using vehicle in unsafe condition.— Any person who drives or causes or allows to be driven in any public place a motor vehicle or trailer while the vehicle or trailer has any defect, which such person knows of or could have discovered by the exercise of ordinary care and which is calculated to render the driving of the vehicle a source of danger to persons and vehicles using such place, shall be punished with imprisonment for a term which may extend to one month, or with fine which may extend to five hundred rupees, or with both, or if as a result of such defect an accident causing bodily injury to any person or animal or damage to property takes place, with imprisonment which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

105. Sale of vehicle in or alteration of vehicle to a condition contravening this Ordinance.— Whoever, being an importer of or dealer in motor vehicles, sells or delivers or offers to sell or deliver a motor vehicle or trailer in such condition that the use thereof in a public place would be in contravention of Chapter VI or any rule made thereunder or alters the motor vehicle or trailer so as to render its condition such that its use in a public place would be in contravention of Chapter VI or any rule made thereunder shall be punished with fine which may extend to two hundred rupees:

Provided that no person shall be convicted under this section if he proves that he had reasonable cause to believe that the vehicle would not be used in a public place until it had been put into a condition in which it might lawfully be so used.

106. Using vehicle without permit.— Whoever drives a motor vehicle or causes or allows a motor vehicle to be used or lets out a motor vehicle for use in contravention of the provisions of sub-section (1) of section 44 shall be punished with imprisonment for a term which may extend to six months or with fine which may extend to five hundred rupees, and if having been previously convicted of such an offence, shall again be guilty of an offence punishable under this section, shall be subject for every such subsequent offence to imprisonment for a term which may extend to two years, or with fine which may extend to one thousand rupees, or with both.

(2) Nothing in this section shall apply to the use of a motor vehicle in an emergency for the conveyance of persons suffering from sickness or injury or for the transport of materials for repair or of food or materials to relieve distress or of medical supplies for a like purpose; provided that the person using the vehicle reports such use to the Regional Transport Authority within seven days.

107. Driving vehicle exceeding permissible weight.— Whoever drives a motor vehicle or causes or allows a motor vehicle to be driven in contravention of the provisions of section 76 or of the conditions of any permit issued thereunder, or in contravention of any prohibition or restriction imposed under section 78 shall be

punished with fine which may extend to one hundred rupees, and if having been previously convicted of such an offence, shall again be guilty of an offence under this section, shall be subject for every such subsequent offence to fine which may extend to five hundred rupees.

108. Penalty for failing to stop in case of accident or failure to furnish information, etc.— Whoever contravenes the provisions of clause (c) of sub-section (1) of section 92 or any of the provisions contained in section 94 or furnishes any information required to be furnished thereunder which he knows to be false shall be punishable with imprisonment which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

109. Taking vehicle without authority.— Whoever takes and drives away any motor vehicle without having either the consent of the owner thereof or other lawful authority shall be punished with imprisonment which may extend to three months, or with fine which may extend to five hundred rupees, or with both:---

Provided that no accused person shall be convicted under this section if the Court is satisfied that the accused acted in the reasonable belief that he had lawful authority or in the reasonable belief that the owner would in the circumstances of the case have given his consent if he had been asked to do so.

110. Unauthorized interference with vehicle.— Whoever otherwise than with lawful authority or reasonable excuse enters or mounts any stationary motor vehicle or tampers with the brake or any part of the mechanism of a motor vehicle shall be punished with imprisonment which may extend to one month or with fine which may extend to two hundred rupees, or with both.

111. Disobedience of orders, obstruction and refusal of information.— Whoever wilfully disobeys any direction lawfully given by any person or authority empowered under this Ordinance to give such direction, or obstructs any person or authority in the discharge of any functions which such person or authority is required or empowered under this Ordinance to discharge, or, being required by or under this Ordinance to supply any information, withholds such information or gives information which he knows to be false or which he does not believe to be true shall, if no other penalty is provided for the offence, be punished with fine which may extend to two hundred rupees.

[156]^[156]111-A. Penalty of contravention of rules relating to appliances.—

Whoever carries in any motor vehicle any appliance the carrying of which is prohibited by rules made under section 74 shall be punished with fine which may extend to five hundred rupees and such appliance shall be forfeited to Government.]

112. General provision for punishment of offences not otherwise provided for.—

Whoever contravenes any provision of this Ordinance or of any rules made thereunder shall, if no other penalty is provided for the offence under this Ordinance, be punished with fine which may extend to one hundred rupees, and if having been previously convicted of such an offence, shall again be guilty of an offence punishable under this section, shall be subject for every such subsequent offence to fine which may extend to five hundred rupees.

[157]^[157]112-A. Penalty for fabricating or counterfeiting emergency light or

any other distinctive sign.— Whoever displays an emergency light or fabricates or counterfeits any other distinctive sign on a vehicle portraying the same to belong to Government or any emergency service or working as an emergency vehicle in violation of rules prescribed by Government shall be punished with imprisonment which may extend to six months, or with fine which may extend to one thousand rupees, or with both.]

113. Power of arrest without warrant.— (1) A police officer in uniform may arrest without warrant any person who commits in his view an offence punishable under section 99 or section 100 or section 110:---

Provided that any person so arrested in connection with an offence punishable under section 100 shall be subjected to a medical examination by a registered medical practitioner within two hours of his arrest, and if not so subjected within the said period of two hours shall be released from custody.

(2) A police officer in uniform may arrest without warrant—

(a) any person who being required under the provisions of this Ordinance to give his name and address refuses to do so or gives a name and address which the police officer has reason to believe to be false, or

(b) any person concerned in an offence under this Ordinance or reasonably suspected to have been so concerned, if the police officer has reason to believe that he will abscond or otherwise avoid the service of a summons.

(3) A police officer arresting without warrant the driver of a motor vehicle shall, if the circumstances so required, take or cause to be taken any steps he may consider proper for the temporary disposal and safe custody of the vehicle.

114. Power of police officer to seize documents.— (1) Any police officer authorised in this behalf or other person authorized in this behalf by Government may, if he has

reason to believe that any identification mark carried on a motor vehicle or any licence, permit, certificate of registration, certificate of insurance or other document produced before him by the driver or person in charge of a motor vehicle is a false document

within the meaning of section 464 of the Pakistan Penal Code **[158]**^[158], seize the mark or document and call upon the driver or owner of the vehicle to account for his possession of or the presence in the vehicle of such mark or document.

(2) Any police officer authorized in this behalf by Government may, if he has reason to believe that the driver of a motor vehicle who is charged with any offence under this Ordinance may abscond or otherwise avoid the service of a summons, seize any licence held by such driver, and forward it to the Court taking cognizance of the offence, and the said Court may, on the appearance of such driver before it and on such terms as to security as it may deem fit, return the licence to him, and require him to surrender any temporary acknowledgment given to him under sub-section (3).

(3) A police officer seizing a licence under sub-section (2) shall give to the person surrendering the licence a temporary acknowledgment thereof and such acknowledgment shall authorise the holder to drive any motor vehicle specified in his licence until the licence has been returned to him or up to a date which the police officer shall specify in the temporary acknowledgment whichever is earlier:---

Provided that where for any cause in respect of which the holder of the licence is not at fault, he is unable to appear in the Court before the temporary acknowledgment ceases to be effective, any magistrate or a police officer authorized by Government in this behalf may, on application made to him, substitute a later date in the temporary acknowledgment given under this sub-section.

115. Power to detain vehicle used without certificate of registration or permit.—

Any police officer authorized in this behalf or other person authorized in this behalf by Government may if he has reason to believe that a motor vehicle has been or is being used in contravention of the provisions of sub-section (1) of section 23 or without the permit required by sub-section (1) of section 44 or in contravention of any condition of such permit relating to the route on which or the area in which or the purpose for which the vehicle may be used, seize and detain the vehicle, and for this purpose take or cause to be taken any steps he may consider proper for the temporary safe custody of the vehicle.

116. Summary disposal of cases.— (1) A Court taking cognizance of an offence under this Ordinance shall, unless for reasons to be recorded in writing, the Court directs

otherwise or when the offence is an offence specified in Part A of the Fifth Schedule state upon the summons to be served on the accused person that he,---

(a) may appear by pleader and not in person, or

(b) may by a specified date prior to the hearing of the charge plead guilty to the charge by registered letter and remit to the Court such sum not exceeding seventy-five rupees as the Court may specify.

(2) Where the offence dealt with in accordance with sub-section (1) is an offence specified in Part B of the Fifth Schedule, the accused person shall, if he pleads guilty to the charge, forward his licence to the Court with the letter containing his plea in order that the conviction may be endorsed on the licence.

(3) Where an accused person pleads guilty and remits the sum specified and has complied with the provisions of sub-section (2), no further proceedings in respect of the offence shall be taken against him, nor shall he be liable to be disqualified for holding or obtaining a licence by reason of his having pleaded guilty.

[159]^[159]**[116-A. Ticketing System.**— (1) A Police Officer in uniform not below the rank of Head Constable, may, notwithstanding anything to the contrary contained in this Ordinance, or any other law for the time being in force, charge on the spot any person committing in his view an offence mentioned in the Twelfth Schedule in respect of a motor vehicle.

(2) A Police Officer acting under sub-section (1) shall draw up a charge on five copies on Form-J and shall,---

(a) forthwith deliver three copies thereof to the offender, who shall acknowledge its receipt under his signatures or thumb-impression, as the case may be;

(b) forward the fourth copy along with seized document to the branch of the bank, post office or traffic sector office wherefrom the offender will get back his seized document after payment of the fine; and

(c) retain the fifth copy for record.

(3) A person charged with an offence under this section shall, if he does not want to contest the charge, pay within ten days from the date of delivery of the charge to him under sub-section (2), the penalty specified for the offence in the Twelfth Schedule, as mentioned in the charge, through cash in the notified branch of the bank of the town, or post office or traffic sector office as indicated in the charge.

(4) Where the accused person pleads guilty and pays the prescribed fine and has complied with the provisions of sub-section (3), no further proceedings in respect of the offender shall be taken against him.

(5) The bank, post office or the traffic sector office shall retain one copy of the charge for record, send second copy to the treasury and shall hand over the third copy to the depositor.

(6) If the fine is not paid in the manner provided in sub-section (3), the Police Officer drawing up the charge shall institute a complaint against the offender before the court having jurisdiction to try that offence.

(7) If during the trial, the offender is found guilty of the offence by the trial court, he shall be convicted to fine double to that mentioned in the charge.]

117. Restriction on conviction.— No person prosecuted for an offence punishable under section 99 **[160]**^[160]_[* * *] shall be convicted unless—

(a) he was warned at the time the offence was committed that the question of prosecuting him would be taken into consideration, or

(b) within fourteen days from the commission of the offence, a notice specifying the nature of the offence and the time and place where it is alleged to have been committed, was served on or sent by registered post to him or the person registered as the owner of the vehicle at the time of the commission of the offence, or

(c) within twenty-eight days from the commission of the offence, a summons for the offence was served on him:---

Provided that nothing in this section shall apply where the Court is satisfied that,---

(a) the failure to serve the notice or summons referred to in this sub-section was due to the fact that neither the name and address of the accused nor the name and address of the registered owner of the vehicle could with reasonable diligence have been ascertained in time, or

(b) such failure was brought about by the conduct of the accused.

118. Jurisdiction of Courts.— No Court inferior to that of a magistrate of the second class shall try any offence punishable under this Ordinance or any rules made thereunder.

CHAPTER IX

MISCELLANEOUS

119. Publication of and commencement of rules.— (1) Every power to make rules given by this Ordinance is subject to the condition of the rules being made after previous publication.

(2) All rules made under this Ordinance shall be published in the official Gazette, and shall, unless some later date is appointed, come into force on the date of such publication.

120. Appointment of motor vehicles officers.— (1) Government may, for the purpose of carrying into effect the provisions of this Ordinance establish a Motor Vehicles Department and a Transport Department and appoint as officers thereof such persons as it thinks fit.

(2) Every such officer shall be deemed to be a public servant within the meaning of section 21 of the Pakistan Penal Code.

(3) Government may make rules to regulate the discharge by officers of the Motor Vehicles Department and the Transport Department of their functions, and in particular and without prejudice to the generality of the foregoing power, to prescribe the uniform to be worn by them, the authorities to which they shall be subordinate, the duties to be performed by them, the powers to be exercised by them, and the conditions governing the exercise of such powers.

121. General provisions regarding appeals to prescribed appellate authorities.—

(1) An appeal under sub-section (3) of section 14, sub-section (3) of section 16, sub-section (4) of section 17, sub-section (1) of section 36 or section 66 shall not operate as a stay of the order or proceedings under the order appealed from, except so far as the appellate authority may direct.

(2) In an appeal under this Ordinance, the order appealed from shall not be altered or reversed merely on account of any error, omission or irregularity, not materially affecting the merits, in the procedure or order of the original authority.

122. Repeal and savings.— (1) The enactments specified in the

[161]^[161] [Fourteenth] Schedule are hereby repealed to the extent specified against each.

(2) Notwithstanding the repeal of the enactments specified in the Twelfth Schedule, everything done, action taken, obligation, liability, penalty or punishment incurred, inquiry or proceeding commenced, officer appointed or person authorised, jurisdiction or power conferred, licence, certificate or permit granted, rule made and order issued under any of the provisions of the said enactments shall, if not inconsistent with the provisions of this Ordinance, continue in force and, so far as may be, be deemed to have been respectively done, taken, incurred, commenced, appointed, authorised, conferred, granted, made or issued under this Ordinance.

Traffic Rules & Regulations in Pakistan (Structured Guide)

1. General Driving Rules

- **Seat Belt:** Mandatory for all passengers in car.
 - *Penalty:* Fine (up to Rs. 1,500 – varies by city).
- **Helmet:** Mandatory for all motorcyclists (rider + passenger in most provinces).
 - *Penalty:* Fine + bike impounded in some cities.
- **Driving Side:** Always drive on the **left side** of the road; overtake from the right.
- **Right of Way:**
 - Give way to vehicles from the right at intersections.
 - At roundabouts, vehicles inside have priority.
- **Headlights & Horns:**

- Headlights must be on at night/poor visibility.
 - Horns allowed only when necessary (not excessive).
-

2. Speed Limits

- **Motorway:** 120 km/h (cars), 110 km/h (buses), 90 km/h (HTV/trucks).
 - **Highways:** 100 km/h.
 - **Urban Roads:** 60 km/h.
 - **Residential Areas:** 40 km/h.
 - *Penalty for violation:* Rs. 2,000+ (higher on motorways).
-

3. Obedience to Signals & Signs

- **Traffic Lights:** Must stop at red, move only on green.
 - *Violation:* Rs. 5,000 fine.
 - **No Entry:** Never enter restricted one-way streets.
 - **Zebra Crossing:** Pedestrians have right of way.
 - **Stop Signs:** Must come to a complete stop.
-

4. Pedestrian Rights

- **Crossings:** Pedestrians must cross only on zebra crossings/green signal.
 - **Sidewalks:** Pedestrians must walk on footpaths; if absent, walk facing traffic.
 - **Driver Obligation:** Vehicles must yield to pedestrians at crossings.
-

5. Driver's Legal Obligations

- **Valid Driving License:** Must carry at all times.
 - *Penalty:* Rs. 5,000 + vehicle impounded.
 - **Vehicle Registration:** RC must be carried.
 - *Penalty:* Rs. 2,000–5,000.
 - **Insurance (if applicable):** Required for commercial/public transport.
 - **Fitness Certificate:** Mandatory for buses, trucks, taxis.
-

6. Safety Equipment & Vehicle Requirements

- **Motorcycles:** Helmets, rear-view mirrors.
 - **Cars:** Seatbelts for all seats, airbags encouraged.
 - **Buses/HTV:** Speed governors, first-aid kits, fire extinguishers.
 - **Banned Modifications:** Black tinted glass, faulty silencers, neon lights.
-

7. Penalties & Fines (Common Offences)

- Driving without license → Rs. 5,000 fine.
 - Over-speeding → Rs. 2,000 fine (higher on motorway).
 - Red signal violation → Rs. 5,000 fine.
 - Using mobile while driving → Rs. 1,000 fine.
 - Overloading passengers → Rs. 5,000 fine.
 - Drunk driving → Fine + up to 6 months imprisonment.
 - Repeat offences → License suspension or cancellation.
-

8. Special City Rules

- **Karachi:** Helmet checks very strict; tinted glasses banned.
 - **Lahore:** LTV/HTV fitness certificates mandatory for commercial use.
 - **Islamabad/Rawalpindi:** Fitness + valid token tax must be up-to-date.
 - **Motorways:** Spot challan, e-ticketing system.
-

9. Educational & Awareness Measures

- **Road Safety Campaigns:** Govt + NGOs run seatbelt, helmet, and over-speeding awareness.
- **School Programs:** Road safety taught to students.
- **Media:** TV ads, banners, social media for campaigns.

National-Highways-Motorways-Dimension-of-Goods-Transport-Vehicle-Rules-2017

1. Short title, extent and commencement.—(1) These rules may be called the National Highways and Motorways (Dimensions of Goods Transport Vehicles) Rules, 2017. (2) These rules shall apply to all goods transport vehicles using national highways and motorways of Pakistan. (3) They shall come into force at once.

2. Definitions.—(1) In these rules, unless the context otherwise requires, the following expressions shall have the meanings hereby respectively assigned to them, that is to say:—

(i) "abnormal load vehicle" means a goods vehicle that may be loaded with technically or physically indivisible single piece object that has:

(a) laden weight more than 65.5 tons; or

(b) length, width or height, including vehicle, more than 19.8 meters, 2.9 meters and 4.9 meters respectively, or both;

(ii) "agricultural vehicle" means a motor vehicle which can only be used to pull farm and agricultural machinery such as plough, harvester, etc. ;

(iii) "articulated vehicle" means a motor vehicle consisting of prime mover and semi-trailer, or prime mover and trailer attached to each other through fifth wheel or-drawbar as the case may be; "bed height" means the vertical distance measured from the surface upon which the vehicle rests, to the highest point on the vehicle;

(v) "effective rear overhang" means the distance measured horizontal and parallel to the longitudinal axis of the vehicle between two vertical plans at right angles to such axis passing through the rear most point of the vehicle and such other point as given below:—

(a) in the case of a motor vehicle having single rear axle, the center point of the rear axle;

(b) in case of motor vehicle having a rear tandem axle assembly, a point, ten centimeters in rear of the center of a straight line joining the center points of the tandem axle; and

(c) in case of motor vehicle having rear tridem axle assembly, the center of the middle axle;

(vi) "GV3w" means a specially designed rigid wide bed HTV goods vehicle, having one front steering axle and a rear tandem axle assembly, used for transportation of wider goods having width between 2.60 meters to 2.90 meters;

(vii) "GVx5w" means a specially designed HTV goods vehicle, comprising prime mover and semi-trailer combination with total five axles and one articulation- point, used for transportation of indivisible loads having width between 2.60 meters to 2.90 meters and overall length not exceeding 19.81 meters and having weight within the permissible limits;

(viii) "GVx6w" means a specially designed HTV goods vehicle, comprising prime mover and semi-trailer combination with total six axles and one articulation point, used for transportation of indivisible loads having width between 2.60 meters to 2.90 meters, both inclusive and overall length not exceeding 19.81 .meters and having weight within the permissible limits;

(ix) "Gx3" means a three axle HTV goods vehicle, comprising prime ,mover and semi-trailer combination with a total of three axles and one articulation point;

(x) "Gx4a" means a four axle HTV goods vehicle, comprising prime mover and semi-trailer combination having such axle configuration that the prime mover has front steering axle, a rear single axle and the smi-trailer has a tandem axle assembly; "Gx4b" means HTV goods vehicle, comprising prime mover and semi-trailer combination having such axle configuration that the prime mover has front steering axle, a rear tandem axle and the semi-trailer has a single axle;

(x ii) "Gx5a" means five axle HTV. goods vehicle, coMprising prime mover and semi-trailer combination having such axle configuration that the prime mover has front steering axle, a rear ingle axle and the semi-trailer has a tridem axle assembly;

(xiii) "Gx5b" means a five axle FITV goods vehicle, comprising prime mover and semi-trailer combination having such axle configuration that the prime mover has front steering axle, a rear tandem axle and the semi-trailer has a tandem axle assembly;

(xiv) "Gx6a" means a six axle HTV goods vehicle, comprising prime mover and semi-trailer combination having such axle configuration that the prime mover has front steering axle, a rear tandem axle and the, semi-trailer has a tridem axle assembly;

"Gx6b" Means a six axle HTV goods vehicle, comprising prime mover and semi-trailer combination, having such axle configuration that the prime mover has front steering axle, a rear tridem axle and the semi-trailer has a tandem axle assembly;

(x vi) "G1" means two axle LTV goods vehicle having vehicle length less than 3.5 meters, registered laden weight less than two thousand five hundred kilograms and has a single row of seat; ,

(xvii) "G2" means two axle LTV goods vehicle having vehicle length between 3.5 meters to 5.3 meters, both inclusive, registered laden.

weight less than six thousand kilograms and has a single row of seat; (xviii) "010" means rigid HTV goods vehicle having a front steering axle and a rear single axle intended for carrying goods;

(xix) "G1 1" means rigid HTV goods vehicle having a front steering axle and a rear tandem axle assembly;

(xx) "G12" means double steering axles HTV goods vehicle with a rear tandem axle, where the gross vehicle weight of such vehicle does not exceed thirty three thousand kilograms;

(xxi) "GV 10" means rigid HTV goods vehicle exclusively designed and intended for transportation of cars, motorcycles or boats, having one front steering axle and a rear single axle;

(xxii) "GV 11" means rigid HTV goods vehicle exclusively designed and intended for the transportation of cars, motorcycles and boats, having one front steering axle and a rear tandem axle assembly;

(xxiii) "GVx4" means HTV goods vehicle comprising prime mover and semi-trailer combination with a total of four axles and one articulation point which has exclusively been designed and intended for transportation of other wheeled vehicles such as cars, motorcycles and boats;

(xxiv) "HTV" means heavy transport vehicle as defined in the Ordinance;

(xxv) "kingpin forward projection" means the distance measured from the centre of the kingpin to the extreme forward point of the semitrailer in an articulated vehicle; (xxvi)

"kingpin rearward projection" means the distance measured from centre of the kingpin to the extreme rearward point of the prime mover in an articulated vehicle;

(xxvii) "LG1" means rigid LTV goods vehicle, mounted with a tank having capacity less than nine hundred ninety-nine liters and gross vehicle weight less than five thousand kilograms which is intended for the carriage of liquid and gaseous goods, where such vehicle has a front steering axle and rear single axle;

(xxviii) "LG10" means rigid HTV goods vehicle, mounted with tank having capacity more than one thousand liters and gross vehicle weight less than seventeen thousand five hundred kilograms intended for the carriage of liquid and gaseous goods, where such vehicle has a front steering axle and a rear single axle;

(xxix) "LG1 1" means rigid HTV goods vehicle, mounted with a tank having capacity more than one thousand liters and gross vehicle weight less than twenty-five thousand five hundred kilograms intended for the carriage of liquid and gaseous goods, where such vehicle has front steering axle and rear tandem axle assembly;

(xxx) "LGx3" means HTV goods vehicle, mounted with a tank intended for the carriage of liquid and gaseous goods, where such vehicle comprises of prime mover and semi-trailer combination with a total three axles and one articulation point;

(xxxi) "LGx4a" means a four axle HTV goods vehicle, mounted with a tank intended for the carriage of liquid and gaseous goods, where such vehicle comprises of prime mover

and semi-trailer combination having such axle configuration that the prime mover has front steering axle, a rear tandem axle and the semi-trailer has a single axle;

(xxxii) "LGx4b" means a four axle HTV goods vehicle, mounted with a tank intended for the carriage of liquid and gaseous goods, where such vehicle comprises of prime mover and semi-trailer combination having such axle configuration that the prime mover has front steering axle, a rear single axle and the semi-trailer has a tandem axle assembly;

(xxxiii) "LGx5a" means a five axle HTV goods vehicle, mounted with a tank intended for the carriage of liquid and gaseous goods, where such vehicle comprises of prime mover and semi-trailer combination having such axle configuration that the prime mover has front steering axle, a rear tandem axle and the semi-trailer has a tandem axle assembly;

(xxxiv) "LGx5b" means a five axle HTV goods vehicle, mounted with a tank intended for the carriage of liquid and gaseous goods, where such vehicle comprises of prime mover and semi-trailer combination having such axle configuration that the prime mover has front steering axle, a rear single axle and the semi-trailer has a tridem axle assembly;

(xxxv) "LGx6a" means a six axle FITV goods vehicle, mounted with a tank intended for the carriage of liquid and gaseous goods, where such vehicle comprises of prime mover and semi-trailer combination, having such axle configuration that the prime mover has front steering axle, a rear tandem axle and the semi-trailer has a tridem axle assembly;

(xxxvi) "LGx6b" means a six axle HTV goods vehicle, mounted with a tank intended for the carriage of liquid and gaseous goods, where such vehicle comprises of prime mover and semi-trailer combination, having such axle configuration that the prime mover has front steering axle, a rear tridem axle and the semi-trailer has a tandem axle assembly;

(xxxvii) "LTV" means light transport vehicle as defined in the Ordinance; **(xxxviii)** "NHA" means National Highway Authority established under the National Highway Authority Act, 1991 (XI of 1991);

(xxxix) "NH&MP" means National Highways and Pakistan Motorway Police; **(xl)**

"Ordinance" means National Highways Safety Ordinance, 2000 (XL of 2000); **(xli)** "outer track width" means distance between outer most plane of left tyre and right tyre attached to the two ends of an axle but does not include the tyre bulge caused by load.

(xlii) "prime mover" means the locomotive or tractor part of an articulated vehicle;

(xliii) "rear load overhang" means distance between rear edge of vehicle and the edge of load hanging from outer dimension;

(xliv) "RlbcG" means agricultural farm tractor towing a single axle walled trailer for transportation of farm loads;

(xlv) "R1 bcGL" means agricultural farm tractor towing a single axle trailer with tank mounted on it for transportation of farm material in liquid state;

(xlvi) "RVxS" means multi axle HTV goods vehicle, comprising either of prime mover and semi-trailer combination or prime mover trailer combination, used for the carriage of abnormal load;

(xlvii) "restricted access vehicles" means vehicles which are not allowed on national highways and motorways except on special permission of NH&MP and NHA;

(xlviii) "semi-trailer" means the rear portion of the articulated vehicle which is superimposed on the drive wheels so that part of its weight is borne by the prime mover;

(xlix) "top deck rear extension" means the protruding portion of the top deck beyond the rear extremity of the lower deck in a car transport vehicle;

(1) "trailer" means the rear portion of an articulated vehicle connected to the prime mover through drawbar;

(li) "vehicle height" means the vertical distance, measured from the surface upon which the vehicle rests to the highest point on the top of vehicle including the load height of loaded vehicle; (Hi) "vehicle length" means the greatest longitudinal dimension of the vehicle including the load length of a loaded vehicle.

(lii) "vehicle width" means the greatest transverse dimension of the vehicle, including load of a loaded vehicle except the tyre bulge, side mirror and protruding indicators;

(liv) "wheel base" means center to center distance between front most and the rear most axle and where the rear axle comprises of tandem or tridem axle assembly, the center of such axle assembly.

(2) Other terms, expressions and phrases used in these rules shall have the same meaning as provided in the Ordinance.

3. Dimensions of goods transport vehicle

(1) The dimensions of goods transport vehicle shall not exceed the dimensions specified in the First Schedule to these rules.

(2) No goods transport vehicle in violation of the dimensions specified in the First Schedule shall be allowed on national highways and motorways: Provided that notwithstanding any thing contained in these rules, the Regulations, Technical Standards for the Petroleum Industry (Road Transport Vehicle, Containers and Equipment Used for the Transportation of Petroleum Products), promulgated under the Oil and Gas Regulatory Authority Laws, shall apply to the vehicles used for transportation of petroleum products.

(3) If the outer track width of various axles of a vehicle is different, the axle having minimum outer track width shall be considered: Provided that this sub-rule shall not apply to GV3w, GVx5w and GVx6w vehicles.

(4) Vehicle length shall not include the front protruding bumper made of passive safety material:

Provided that no other object shall protrude beyond the front bumper. 4. Conditional access for certain types of vehicles on national highways and motorways.—

(1) The vehicles mentioned in Second Schedule to these rules may be given access to national highways and motorways on the condition that such vehicle,—

(a) shall be exclusively used for transportation of construction machinery, like excavator, grader, bulldozer, road roller etc. and shall not carry more than one piece of such machinery;

(b) shall not carry divisible goods and containers loaded with divisible goods;

(c) shall not be allowed to travel unloaded during dusk to dawn and at the time of poor visibility; and

(d) shall have appropriate lights installed on the extremities of the vehicle and load during night and red flags during day light.

(2) Where the load protrudes from the vehicle permission from NH&MP shall be obtained and vehicle shall be accompanied by lead and rear vehicle.

5. Restricted access for certain type of vehicles on national highways and

motorways.—The vehicles mentioned in Third Schedule to these rules, shall not be allowed to use national highways and motorways except for transporting abnormal load on conditions specified herein below, namely:—

(a) the owner, or carrier of such abnormal load shall apply to the NH&MP on Form-A, set out in the Third Schedule, along with original bank receipt of the fee deposited in the National Consolidated Fund', at the rate of thirty rupees per kilometer of journey on national highway or motorway;

(b) NH&MP, on a report from NHA, may grant permission for one time journey to such vehicle and shall require the owner or carrier of the abnormal load vehicle to take the following steps, namely:— the driver or owner of the vehicle shall inform NH&MP of the area concerned before bringing the vehicle on national highway or motorway;

(ii) the vehicle shall move only during day time and shall be parked at safe location between dusk to dawn;

(iii) the vehicle shall be accompanied by an extra prime mover;

(iv) for safety purposes, the owner and or carrier shall arrange a lead car in front, one rear vehicle and a mobile workshop to move along the abnormal load;

(v) all the vehicles thereof shall have amber revolving lights of standard size fitted on top and shall have inscription "ABNORMAL LOAD" in front and rear of the vehicle, painted in red reflecting colour visible from one hundred meter distance; red flags and amber revolving lights shall be fitted on outer extremities of the abnormal load;

(vii) the driver shall follow instructions of NH&MP of the area concerned; and

(viii) any other conditions that may be attached to the permission letter.

6. Prohibition on un-authorized fabrication and alteration of goods transport vehicles.—

(1) No person shall fabricate or alter goods transport vehicle unless duly authorized by the maker of the vehicle in this behalf.

(2) Alteration or fabrication under sub-rule (1) shall be recorded on the certificate of registration of the vehicle as per sections 28, 32 or 33 of the Ordinance, as the case may be.

(3) Alteration or fabrication of vehicle includes the construction of semi-trailer or trailer for a prime mover of an articulated vehicle.

7. Requirement of declaration by the owner.—The owner of goods transport vehicle shall submit to the registering authority, or motor vehicle examiner, as the case may be, at the time of registration of such vehicle, or while applying for fitness certificate or its renewal, affidavit on stamp paper of Rs. 30 denomination duly attested, to the effect that he/ she knows the contents of these rules and that his/ her vehicle conform to the dimensions specified for goods transport vehicle in the 1st schedule.

8. Applicability of other rules.—The provision of these rules shall be in /addition to, and not in derogation of, any other law for the time being in force.

This permission is granted on the following conditions.-

- (i) The driver or owner of the vehicle shall inform NF1&MP of the area concerned before bringing the vehicle on national highway or motorway,
- (ii) The vehicle shall move only during day time and shall be park at safe location between dusk to dawn,
- (iii) The vehicle shall be accompanied by an extra prime mover,
- (iv) For safety purposes, the owner and the carrier shall arrange the following additional vehicles to move along the abnormal load.- a. lead car in the front, b. one rear vehicle and c. mobile workshop
- (v) All the above vehicles shall have amber revolving lights of standard size and fitted on their roof top. These vehicles shall also have inscription "ABNORMAL LOAD" in front and rear of the vehicles, painted in red reflecting colour visible from 100 meters distance,
- (vi) Red flags and amber revolving lights shall be fitted on the outer extremities of the abnormal load,
- (vii) The driver shall follow instructions of Is1P.P.:MP ,ffice-E of Rrea C-Oncerneri.

RULES FOR THE USE OF STAFF CARS

The Federal Government is pleased to make the following rules for the use of staff cars, namely:- 1. Short title, application and commencement:- (1) These rules may be called the 'Rules for the Use of Staff Cars, 1980'. (2) They shall apply to the staff cars maintained by various Divisions including the staff cars maintained by the Cabinet Division in the Central Pool and, unless stated otherwise, to operational vehicles. (3) They shall come into force at once.

2. Definitions:- In these rules, unless there is anything repugnant in the subject or context.

(i) 'Division' means a Division as defined in the Rules of Business, 1973 and includes an attached Department and a Subordinate Office;

(ii) 'Officer' means an officer of Grade 16 and above and includes a Minister, or any other dignitary or office holder notified as an 'officer'

(iii) Minister includes a Minister of State and an Adviser having the rank and status of a Minister or Minister of State;

(iv) 'Officer-in-Charge' means an officer nominated by a Division to be responsible for the proper maintenance and utilization of the vehicles of that Division;

(v) 'Official duty' or 'Official Business' means a journey performed in the public interest from office or residence to a place where the presence of the officer is required for official work and back;

(vi) 'Pool Car' means a staff car maintained by the Cabinet Division in the Central Pool;

(vii) 'Operational Vehicle' means a motor vehicle used by the staff of a technical department for operational duties:

(viii) It is clarified that operational vehicles have been defined in 2(vii) of the Rules for the Use Staff Cars-1980". These rules are applicable in cases of all the vehicles maintained by Ministries/ Divisions, Departments and Subordinate Offices unless stated otherwise. Rule 3(5) of the Rules for the Use of Staff Cars, 1980 lays down that no Division shall purchase a staff car (means a motor vehicle or any type) unless a NOC is obtained from the Cabinet Division. All the relevant rules of the Rules for the Use of Staff Cars – 1980 regarding repairs and maintenance, up-keep of vehicles their records

etc are equally applicable in cases of operational vehicles. (Add. Vide No. 12/8/83-CS, dated 25th July, 1983).

(ix) 'Staff Car' means motor vehicle of any type maintained by Government;

(x) 'Annexure' means Annexure to these rules; (xi) 'Entitled Officers' means officers of grade 22, 21 & 20 of the Federal Government borne on the sanctioned Establishment of a Division or an Organization under its administrative control.

3. Name of Staff Cars.-

(1) Each Division shall normally maintain one staff car for use in connection with official business. However, additional staff car can be specially authorized by the Cabinet Division. Explanation.- Any additional staff car which has already been allowed by the Cabinet Division shall be deemed to have been authorized for the purpose of this subrule.

(2) In addition to the staff car (s) provided under sub-rule (1) one staff car shall be provided to each Minister, Minister of State, Advisor and any other dignitary or office holder notified for such facility.

(3) The Division concerned (or for one of the Division in the portfolio) will be responsible for provision of staff cars to Minister and Minister of State and Advisors etc.

(4) The Cabinet Division will arrange for the upkeep and maintenance of a staff cars which becomes surplus to the requirements of Minister, Minister of State, Advisors or any other dignitary or office holder or on completion of project. As soon as such dignitary relinquishes his office, and his successor has already been provided with a staff car under sub-rule (2), the Division concerned shall immediately place the surplus car together with the driver, at the disposal of the Cabinet Division. This will involve no financial adjustment for the cost of the car and the pay and allowance of the driver will continue to be paid by his parent Division till he is posted to some other Division.

(5) No Division shall purchase a staff car unless it has obtained a no objection certificate from the Cabinet Division. In the case of replacement of an existing staff car, it shall first be verified from the Cabinet Division that no surplus car is available.

4. Administrative Arrangements:-

(1) Each Division having a staff car shall detail an officer to be called 'Officer-in-Charge' who shall be responsible for the proper utilization and upkeep of the car and the maintenance of records of the staff car. (2) Each staff car shall immediately after its purchase, be registered by the designation of the Officer-in-Charge of the Division for which it has been purchased and it shall not be required to be insured.

(3) A trained licensed driver shall be engaged for the staff car in accordance with the recruitment policy laid down in Rule 12(2) and garage accommodation shall be arranged.

(4) A small semi-circular metal disc shall be fixed on Govt. transport near number plates of the staff car. It shall have the words "Government of Pakistan" painted along with the

curve, and the name of the Division to which the staff car belongs, in the space within the curve: Provided that such disc need not be fixed on the staff car of a Minister or an entitled officer placed at his disposal for both official and private use.

5. Use of Staff Cars.-

(1) Staff car may be provided for the use of State Guests, members of foreign delegations and other dignitaries visiting Pakistan.

(2) If staff cars are available these may also be provided to Provincial Officers of Grade 18 and above on request provided the official tour is outside their normal jurisdiction.

(3) Except as otherwise provided in these rules, a staff car shall only be used by the officers of Grade 16 and above for official business subject to availability.

(4) An officer may use the staff car for journey from office to his residence if this is performed after working in the office for not less than two hours beyond the normal office hours.

(5) An officer of Grade 19 and above may use the staff car for attending diplomatic and official functions in his official capacity whether during or outside office hours.

(6) Officers of Grade 18 and 19 who live in Rawalpindi but work in Islamabad and vice versa may make use of staff car for going to office and back on pooling arrangements provided they surrender their car maintenance allowance. This facility will be provided only if a number of three officers are available to utilize the staff car. However, the Secretary/Additional Secretary incharge of the Division may relax this subrule in favour of a minimum of two officers of the same Division. Staff Car on pooling arrangements shall not be available for the exclusive use of any officer availing this facility and will report for normal duties in the Division during office hours, as well as after reaching pooling officers home.

(7) Officer-in-charge of the Department may allow an officer to use the staff car for private purposes in exceptional circumstances on payment of Rs.1.5, Rs.3.00, Rs.4.00, Rs.8.00/Rs.12.00, Rs.20.00 and Rs.4.00 for Motorcycle, Car/Jeep/Van(up to 5 seaters), Van/Station Wagon (6-14 seaters) Toyota Coaster non conditioned/Air conditioned or equivalent bus and other heavy duty vehicles used for carrying passengers / trucks for transporting luggage respectively and the overtime allowance if payable to Drivers.

(8) The use of the staff cars may be permitted to cashiers for journeys from office to bank or treasury and back whenever they are required to handle Government money exceeding four thousand rupees and such use of staff car shall be treated as on official business.

(9) The use of staff car shall not be allowed to an officer who is in receipt of conveyance allowance under Supplementary Rule 25.

(10) An officer requiring a staff car for official duty shall fill Part I of the Requisition Slip at Annexure 'C' and send it to the Officer-in-Charge of Transport, who will, subject to availability of car, detail a driver for the specific duty vide Part II of Annexure 'C'. The

entries in Part III of Annexure 'C' will be filled in by the requisitioning officer, before he leaves the car.

(11) Entitled Officers who forego the car maintenance allowance shall be permitted to free use of staff car for official and private purpose subject to the following conditions:-

(i) Only one staff car shall be used both for official as well as private use.

(ii) Such staff car shall not be used during earned leave, leave preparatory to retirement, or any other kind of leave except casual leave and medical leave up to one month.

(iii) Private use of staff cars beyond municipal limits shall not be permitted save on payment as provided under rule 5(7).

(iv) Where the staff car is driven by the entitled officer as permitted by rule 12, the instructions laid down for staff car drivers under clauses (ii), (iv), (vii) of rule 20(1)(a), 20(1)(c) and 20(1)(d), will be observed by the said officer.

(v) It is the responsibility of Ministries / Divisions / Departments / Organizations concerned, where the officer was last posted, to provide official transport to the entitled officers during training or in capacity as OSD from within its existing resources of transport.

6. Use of Staff Cars in contravention of rules: - For any journey made in contravention of rules 17(3) and 28(2)(e) the officer using the staff car shall be charged at the rate of 3.6 and also the late duty allowance, if any, paid to the staff car driver.

7. Details of journey to be given:-

(1) The details (specific places from which and to which journey is performed) and purpose (whether official or otherwise) of each journey shall be stated in the Movement Register maintained for the purpose. Provided that the staff cars, in the exclusive use of a Minister or any officer referred to in Rule 3(2) and the entitled officer under rules 5(11) shall be exempt from the provision of this rule. Journeys made by them shall be recorded as 'running duty' by their Private Secretaries / Personal Assistants.

(2) For cars detailed on official duty beyond municipal limits details of point to point duties shall be recorded.

8. Entries in Movement Register to be signed:- The Movement Register shall be personally signed by the officer using the staff car except that where the Private Secretary attached to the Officer is in Grade 16 or above, he may sign the Movement Register on behalf of the officer. **9. Unsigned Entry in Movement Register:-** An unsigned entry in the Movement Register shall be treated as Private journey and shall be chargeable as per rule 5(7).

10. Borrowing of staff cars:- When a staff car belonging to one Division is borrowed by another Division. The Officer-in-Charge of staff car in the borrowing Divisions shall be responsible for proper utilization of the staff car and for the due compliance of these rules in the same manner as if the staff car belonged to his own Division and shall while

returning the staff car to the lending Division give the following certificate :- “Certified that the staff car was actually used for the purposes indicated in column 5 of the Movement Register and that it was not used in contravention of Rules for the Use of Staff Cars, 1980”

11. Use of Staff Car of a Department by Administrative Division:- A staff car belonging to an Attached Department or a Subordinate Office of a Division shall not be used by the Administrative Department except (as provided) under rule 10 and every Department or office shall be responsible for any miss-use or irregularity committed in this behalf.

12. Staff Car Driver:-

(1) Staff Cars shall be driven by the authorized official drivers who will always be in the livery officially issued to them. However, entitled officers possessing a driving license may drive the staff cars allotted to them in the absence of authorized staff car drivers.

(2) Staff car drivers shall be recruited by the Division / Department concerned after examining the candidates skill in driving and knowledge about the mechanism of the car engine. A committee shall be set up by the Division / Department concerned for recruitment of drivers.

13. Overtime Allowance to drivers:- The staff car drivers shall, for duty performed beyond office hours be entitled to an overtime allowance at such rate as may be allowed by the Government from time to time.

14. Areas within which staff cars are to be used:- The staff car shall be used for duty within the Municipal and Cantonment areas of the city where they are maintained and shall not be used for long distance tours save in exceptional circumstances and in the case of journeys made by the State Guests or the Members of Foreign delegations visiting Pakistan provided that:-

(a) A Minister, Minister of State, Advisor and any other dignitary or office holder may use the staff car beyond the municipal limits.

(b) A Secretary/Additional Secretary of a Division may permit the official use of staff car beyond municipal limits for reasons to be recorded in writing and such relaxation shall invariably be reported to the Cabinet Secretary.

(c) The private use of staff car beyond municipal limits by government officials, including the entitled officers, may be permitted only on payment.

NOTE I.- In the case of Karachi, the term Municipal and Cantonment Areas shall mean the area which comprised the “Federal Capital Area” before the 1st July, 1961 : and in case of Rawalpindi, the term municipal and cantonment areas shall include the Federal Capital;

NOTE II.- An officer using the staff car for a journey upto and from the point of embarkation or disembarkation shall not claim mileage allowance in his traveling allowance bill.

15. Maintenance of Record:- The following registers shall be maintained for each staff car namely :-

(i) Movement Register - A Movement Register shall be maintained in the form as set out in Annex 'A' and shall remain in the custody of the staff car driver. On the cover of this register shall be indicated the name of the Division, the number of staff car, the designation of the Officer-in-Charge with his office telephone number. A copy of these rules shall also be pasted inside the Movement Register.

(ii) Vehicle Log Book .- A bound register in the form as set out in Annex 'B' shall be maintained as the vehicle Log Book by the Officer-in-Charge of the staff car which shall form a permanent historical record of the staff car including all brief description accidents etc. during its life which shall be entered therein. PART I Specification - Details should be copied out from the registration book of the vehicle. PART II Transfers - Entries should be made under this part when a particular vehicle is transferred permanently or temporarily to any other Ministry or Division and also from one Officer-in-Charge to another.

PART III

Summary of repairs.- The details of periodical repairs as well as other repairs including normal servicing and recharging of battery shall be entered under this part.

PART IV

Petrol Account and Record of Mileage. - Petrol and Average account of kilometers / miles per liter on the last day of each month shall be maintained under Part. IV.

PART V Record of Tyres and tubes and other consumable stores (Apart from petrol) connected with the car, e.g. dusters, chamois leather, etc. shall be entered in this part.

PART VI Schedule of vehicle tools and equipment.

16. Checking of the Movement Register:-

(1) The Officer-in-Charge shall ensure that the staff car in his charge is not misused or neglected by the driver and that the petrol of the staff car is not wasted. He shall scrutinize the Movement Register at least once a fortnight to see that all journeys made were properly authorized and that avoidable journeys were not made by the staff car. The Officer-in-Charge shall also record a certificate of checking in the Movement Register.

17. Recovery of charges for private use:-

(1) The Officer-in-Charge shall come to be prepared a bill on the last working day of each month in respect of private use of the staff cars made during the month and shall pass on the bill to the cashier of the Division for the recovery of charges from the officers who used the staff car for private purposes. The bill shall cover the entire mileage done for private purposes and the Officer-in-Charge shall record a certificate after the final entry for each month in the Movement Register that the register has been

examined and that necessary bills have been prepared and sent to the cashier for recovery of charges.

(2) All recoveries of charges for the private use of staff car shall be made at the end of each month through the salary bills of the officers. Recoveries on account of private use of staff car shall not be delayed beyond one month and the Section Officer / Superintendent / the Assistant In-charge of the Branch dealing with the staff cars shall be responsible for scrutinizing the Movement Register at the close of each month and making recoveries if any remaining outstanding from officer for more than a month.

(3) Where reasonable indication of the nature of the journey made by the staff car is not available or where an officer has not signed the register or not supplied the particulars, it shall be assumed that the journey was made on private account and shall be charged accordingly as per rule 6 above.

18. Audit.-

(1) Audit of accounts relating to staff cars shall be conducted periodically by the staff of the Accountant General of Pakistan Revenues.

(2) It shall be the responsibility of the auditing staff to ensure strict observance of these rules and to treat all expenditure made in contravention of these rules as unauthorized.

(3) The auditing staff shall ensure that the use of staff car after its becoming surplus under sub-rules (1) and (2) of rule 3 is treated as unauthorized and charges from the individual using such staff car are recovered in accordance with rule 6.

(4) The Cabinet Division, in consultation with the Finance Division may detail special audit team composed of officer drawn from other Divisions for special audit of certain Divisions having a sizeable fleet of staff cars.

19. Hiring of taxi for official business:-

(1) In view of the provision of staff cars in each Division, strict control shall be exercised over the hiring of taxis for official business and a Deputy Secretary shall be named in each Division for the purpose of granting permission, where necessary to hire a taxi.

(2) Six monthly reports showing expenditure on the hiring of taxis as on the 31st March and the 30th September each year shall be sent by the Officer-in-Charge of each Division to the Ministry of Finance and a copy thereof shall be endorsed to the Cabinet Division.

20. Instructions for staff car drivers.-

(1) The driver of each staff car shall observe the following instructions namely :-

(a) He shall be responsible for:-

(i) The proper upkeep and cleanliness of the staff car;

(ii) Petrol consumption;

(iii) Careful driving;

(iv) Taking precautions against accidents;

(v) Accession for servicing;

- (vi) Repairs;
- (vii) Avoidable damage to the staff car; and
- (viii) Ensuring the road worthiness of the vehicle before proceeding on duty and repairing or getting repaired any fault or mechanical defect;
- (ix) Speed limit of 80 k.m./50 miles per hour.
- (b) He shall always be in possession of his valid driving licence, registration papers, tax token and a copy of the Highway Code in his staff car.
- (c) He will not smoke while driving.
- (d) He will ensure that the staff car is not loaded beyond its prescribed capacity.
- (e) He will get himself medically checked up for general fitness, eye sight and night and colour blindness, once every six months.
- (f) He shall get entries recorded in the Movement Register before the officer or other authorized person leaves the staff car.
- (g) He shall strictly observe driving and traffic regulations and speed limits laid down for different areas.
- (h) He shall not leave the staff car unattended or park it in a manner which violate traffic rules in force.
- (i) That the official vehicles, except staff cars issued to the entitled officers for official / private use are parked in the garages of the concerned offices.
- (2) If any officer refuses to cooperate in regard to the observance of these rules the staff car driver shall not argue with him but carry out the orders of the officers and report the details of incident to the Officer-in-Charge.
- (3) Any contravention of the provisions of sub-rules (1) and (2) above shall be considered as an offence and disciplinary action shall be taken against the staff car driver.

21. Periodical Maintenance of Staff Cars:- The following schedule of checking and servicing of staff cars shall be observed for their proper upkeep and maintenance, namely:-

(1) Daily Maintenance.- A driver of staff car shall carry out the following tasks daily :-

- (i) Checking the level, cleanliness and temperature of water, if required;
- (ii) Checking of engine oil and petrol for ensuring that there is no leakage from any part;
- (iii) Checking tightness of wheel nuts, bolts linkages, pressure, and cleanliness of tyres to ensure that there are no flints, stones etc. which may cause deep abrasions or cuts in a tyre;
- (iv) Checking of all attachments and fittings, controls gauges, lights and brakes; and
- (v) Cleaning by dusting or wiping both the interior and the exterior of the staff car.

(2) Weekly Maintenance.-

A driver of a staff car shall carry out the following tasks once a week:-

- (i) Cleaning by washing of the entire vehicle (from inside and outside) including washing of wheels;

(ii) Removal of battery for cleaning of corrosion from the terminals and their coating with petroleum jelly; checking of vent-plugs, vent-holes and body replenishing with distilled water in the battery if required.

(3) Periodical Maintenance.- Officer-in-charge of the staff car shall see that repairs / servicing / oil change / tuning of the staff cars is always got done from a garage specifically nominated by the manufacturer for the purpose. However, if such arrangements are not available staff cars may be sent to approved automobile workshops for repairs etc. Each Division / Organization shall maintain a preapproved list of such garages / workshops. If an authorized agent provides unsatisfactory service or the charges are exorbitant, work may be got done from other approved garage with the special permission of the Head of the Division / Department.

22. Any fault in a vehicle discovered by the driver while on duty or performing the tasks under Clauses (1) and (2) of rule 21 shall be reported immediately to the Officer-in-Charge.

23. Weekly Inspection by Officer-in-Charge.- The Officer-in-Charge shall be responsible to see that the staff car driver is given sufficient time to carry out the weekly maintenance and shall himself carry out weekly inspection to ensure that the tasks to be performed by the driver under clause (2) of rule 21 have actually been carried out and the vehicle is fit for duty in all respects.

24. Categories of Staff Cars and their Entitlement for use:-

(1) Staff cars for government use may be categorized as under:-

a) Small Cars Up to engine power not exceeding 1300 CC. b) Medium Cars Cars with an engine power ranging from over 1300 CC to 1600 CC. c) Big Cars Engine power exceeding 1600 CC. d) All cars earmarked for foreign dignitaries and Federal / Provincial Ministers, Hon 'able Judges of Supreme Court and Chief Justices of the High Court will be air conditioned. (Add. vide No. 12/65/81-CS, dated 4th August, 1983)

(2) The Prime Minister of Pakistan has been pleased to approve the following revised entitlement of staff cars:-

a. Federal Ministers/Ministers of State/Advisors/ Special Assistants to the Prime Minister with status of Minister/Minister of State. "Provided that the protected vehicle shall be allocated to a vulnerable dignitary subject to availability and approval of the Prime Minister. However, Secretary, Cabinet Division may allow expenses on maintenance, repair and POL of any vehicle from the budget of Cabinet Division, Foreign Office or any other Division, which he may approve; provided that the vehicle was bought by a Government Authority / Ministry / Division and was used by anyone, after due authorization, whose assigned work falls within the ambit of that Division". 1800 CC b. Secretaries General/Secretary/Parliamentary Secretaries and Officers

equivalent to BPS-22. 1300 CC c. Additional Secretaries/Senior Joint Secretaries/ Officers in BPS-21/20 and equivalent. 1000 CC (3) The Senior government functionaries holding Staff Car with engine capacity above the entitlement will continue to use the existing vehicles till they are due for replacement as per rules subject to the condition that the vehicle is of older model than 2003. (4) The Prime Minister has further been pleased to approve the responsibility of providing Staff Cars to various government functionaries as indicated below:- a. Federal Minister / Minister of State Respective Ministry b. Advisors to the Prime Minister/ Parliamentary Secretaries allocated a portfolio. Respective Ministry c. Advisors/Special Assistants to the Prime Minister without portfolio. Cabinet Division (5) The petrol/CNG ceiling of entitled officers are as under :-

Petrol & CNG Ceiling Allowances (by BPS)

1. BPS-20

- Petrol Ceiling: **180 litres per month**
- CNG Ceiling: **20 litres petrol + 125 Kg CNG**

2. BPS-21

- For **1000 CC car: 180 litres petrol per month**
- For **1300 CC cars (model older than 2003): 270 litres petrol per month**
- CNG Ceiling: **20 litres petrol + 125 Kg CNG**

3. BPS-22

- Petrol Ceiling: **360 litres petrol per month**
- CNG Ceiling: **35 litres petrol + 250 Kg CNG**

25. Replacement of Staff Cars

1. Restriction on Replacement

- Staff cars shall not be replaced except in the manner provided below.

2. Composition of Vehicle Condemnation Committee

- Each Ministry/Division will constitute a Vehicle Condemnation Committee.
- The Committee shall consist of:
 - **Chairman** → Joint Secretary of the Ministry/Division or Head of the Department (not below BS-20).
 - **Member** → DFA of the Ministry/Division/Department concerned.
 - **Technical Member** → A Grade-19 officer from the parent Ministry/Division dealing with motor vehicles of the Ministry and its subordinate offices.

3. Meetings of the Committee

- The Committee shall meet in the Division on an appointed date and time.
- It will examine the staff car proposed for replacement.
- After examination, the Committee shall make its **recommendation in writing** to the Secretary of the Division.

(3) The Committee shall meet in the Division on an appointed date and time to examine the staff car proposed to be replaced and shall make its recommendation, in writing, to the Secretary of the Division.

5. Conditions for Replacement of Staff Cars:

(a) No vehicle will be replaced before the completion of the prescribed life fixed on the basis of mileage / number of years used.

(b) Prescribed life and mileage laid down for condemnation of various vehicles, in the staff car rules 1980 is as under:- K. Ms. 1) Motorcycle 5 years 100,000

2) Suzuki Car / Van 6 years 160,000

3) Car 1300 CC 6years 200,000

4) Car 1600 CC 7 years 250,000

5) Jeep, Station 8 years 200,000 Wagon, Bus Truck, 2000 CC and above.

(c) If a vehicle is required to be replaced before reaching the life fixed a special procedure given under rule 25(6)

(b) will be followed. **Exemption.-** No life is fixed for big cars. Car who meets a serious accident can propose for condemnation at any time as per following procedure.

(6) Replacement Procedure of Staff Cars:-

(a) Staff cars when due for replacement as per their fixed life may be replaced at the discretion of the Secretary / Additional Secretary in charge of the Division concerned.

(b) In the case of a vehicle required to be replaced under clause 25(5)

(c) the matter shall be referred to the Cabinet Division together with necessary justification. In such case of replacement the vehicle need not be pre-inspected as required for normal replacements. After agreement of that Cabinet Division the case would be referred to the authorized workshop of the Cabinet Division for their technical opinion. Finally the Vehicles Committee in the Finance Division will give its recommendation and also bring out any adverse reflections to the notice of the concerned Secretary where necessary. On a positive recommendation of the Committee the Staff Car may be replaced.

(c) All cases of replacement of cars would continue to be referred to the Cabinet Division for obtaining "No objection certificate"

26. Disposal of Cars:- All vehicles shall be disposed of by Ministry / Division concerned through public auction.

27. Registration Number etc. to be Communicated.- Whenever a new staff car is purchased by a Division, its registration number together with the registration number of the car going to be replaced shall be communicated to the Accounts Officer concerned, who shall admit expenditure of such staff car, under intimation to the Cabinet Division.

28. Central Pool of Cars.-

(1) Cabinet Division shall maintain a Central Pool of Staff Cars, consisting of cars of different categories as per requirements.

(2) Availability of Pool Cars.- Subject to availability the following will be eligible for the use of staff cars in the Central Pool :-

a) Vehicles to be used for protocol duties with the visiting foreign dignitaries and VVIPs i.e. the President of Pakistan and the Prime Minister.

b) Ministries / Divisions for the use of State Guests, Members of foreign delegations and VIPs visiting Pakistan;

c) Federal Ministers, Minister of State, Adviser and any other dignitary or office holder when their staff cars are temporarily off the road for repairs for a period not exceeding fifteen days.

d) The Provincial Governors, the Chief Ministers, Provincial Ministers and other officers with similar rank and status.

e) Officers of Grade 18 and above of the Federal Government and Provincial Governments while on tour to Rawalpindi / Islamabad; Provided that officers serving in Rawalpindi / Islamabad shall not be entitled to the use of Pool cars in connection with their journey to and from the Airport or the local Railway Stations.

f) Journeys performed in contravention of sub-rule

(2) shall be chargeable as private journey under rule

6. g) Details of Journeys performed by the State Guests, and VIPs etc. referred to in clause

(a) of sub-rule

(2) may not be noted in the Movement Register but recorded as 'Running Duty' provided it is signed by an official of the requisitioning Division. h) Pool cars shall not be made available for normal use of a Division or for use under Rule 5(8). However, a Pool car can be provided to a Division subject to availability if its own staff car is temporarily out of order or in an emergency.

i) **Ministries / Divisions** and their allied offices, etc. desiring to retain Central Pool vehicles for more than seven days will bear all operational expenditure on these vehicles beyond this period. Moreover, fresh requisition by the same Division / office within fifteen days of the first requisition will be considered to be an extension of the previous requisition and POL requirements will be met by the requisitioning Ministry / Division / etc.

(3) Pool Cars for Specific Duty Only:- Except as otherwise provided in these rules, pool cars shall be made available for specific duties only and shall not be provided for an indefinite period in lieu of a staff car of a Division which is sent for repairs etc. After performance of each specific duty the staff car shall be returned to the Central Pool.

(4) Request for Staff Cars from Central Pool:-

(a) When the Staff car of a Division is to be sent for repairs which may keep it off the road for more than two days and a pool car is required, the Cabinet Division shall be informed and confirmation regarding the availability of pool car shall be obtained before a formal requisition of pool car is made.

(b) The officer-in-charge of the borrowing Division shall on each such occasion, furnish the following information:

i. Designation of officer and name of the Division requiring the staff car.

ii. Date and time for which required, and

iii. The purpose for which required.

(c) All demands for the pool cars will be registered chronologically in the Cabinet Division in the form as given in Annexure 'D' priority in allotments of pool cars shall normally be assigned in the order of registration.

(5) Emergency Demands.- In case of an emergency demand for a pool car for any specific duty telephonic request may be made to the incharge of pool cars in the Cabinet Division who shall try to meet the same subject to verification of such emergency and availability.

(6) Claim for Taxi Hire for Non-Provision of Pool Cars.- All demands for the provision of staff cars from the Central Pool shall be attended to subject to the availability of staff cars and non-provision of a staff car shall not entitle an officer to claim taxi hire from the Government.

(7) Replacement of Pool Cars.- The procedure laid down for the replacement of staff cars of a Division shall be followed in the Cabinet Division in the case of pool cars also.

29. Repeal.- Rules for the Use of Staff Cars, 1975 are hereby repealed.

